BNSS — Final Exam Cluster Notes

Bharatiya Nagarik Suraksha Sanhita 2023 (old CrPC) · Juvenile Justice Act 2015 · Probation of Offenders Act 1958 · Osmania University LLB (3 YDC) · Semester V

Ready-to-read, ready-to-write answers for **Part A**, **Part B** & **Part C** · built from **165 questions** of **11 papers (2013–2021 + a recent common paper)** · by **lawsticker-ai.com**

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How to use these notes

- Each **cluster** = one topic family that keeps coming back. Its first box lists **every past question** from it (A = short note, B = essay, C = problem).
- **Part B essays** are written to be **copied as they are** — headings, bare-act lines, tables, cases, conclusion. **Part A** = the pink short-note boxes (or the first 2 paragraphs of an essay). **Part C** = the green **IRAC** boxes (Issue · Law · Apply · Decision).
- **Sections**: **BNSS first, old CrPC in brackets** — e.g. FIR **S.173 BNSS** (154 CrPC). Offences: **BNS** with old IPC. Write both in the exam; older papers use CrPC numbers.
- Skim mode: read only the **bold** and yellow words, the ★ golden rules, the case **'Trick'** lines and the 🧠 memory tricks.

What the paper looks like

Part	Questions	Pattern seen in past papers
A	8 short notes · answer 5 (6 marks)	basics (police, courts, cognizable), FIR / charge sheet, bail, probation / parole, juvenile — almost every year
B	4 essays · answer 2 (15 marks)	**Q12 = Unit V** (JJ Act or Probation Act) in **7 of 8** full-text papers · **Sessions / warrant / summary trial** in 7 papers · FIR · search & seizure
C	4 problems · answer 2 (10 marks)	**juveniles** (age, heinous offence) · **bail** · **arrest of a judge** · double jeopardy · charge / joinder

The 2021 papers were 2-hour papers (Part A any four, Part B one, Part C one); a recent common paper had 9 short notes (any six, 4 marks), essays of 18 marks and problems of 10.

Writing formula

Part	Write in this order
A	**definition** → **section (BNSS + CrPC)** → 3–4 key points → **one case** → one-line conclusion
B	**intro + meaning** → **bare act line** → **steps / essentials** (diagram or table) → **constitutional angle (Art. 14, 20, 21, 22)** → **2–3 cases with stories** → **conclusion**
C	**Issue** (one line) → **Law** (BNS / BNSS / JJ section + case) → **Apply** to the facts → **Decision** (clear yes / no + remedy)

The 14 clusters — priority map

#	Cluster	Unit	Tier	Qs
1	Courts, functionaries & kinds of offences	I	T1	20
2	FIR, complaint & investigation	I	T1	20
3	Arrest & rights of the arrested	I–II	T2	10
4	Search, seizure, process & public order	I–II	T2	10
5	Bail & bonds	II	T1	15
6	Fair trial & bars to trial	III	T1	17
7	Charge & joinder	III	T2	9
8	Trials: sessions, warrant, summons, summary	III–IV	T1	14
9	Plea bargaining & compounding	IV	T3	5
10	Judgment, sentence & execution	IV	T3	5
11	Victims & compensation	IV	T3	5
12	Appeal, reference, review, revision	IV	T3	6
13	Probation, parole & reform	V	T1	12
14	Juvenile justice	V	T1	17

Qs = questions asked from the cluster in the **11 papers** (previous year question paper analysis). **Tier**: T1 = one or more questions per paper on average, T2 = 0.6–1, T3 = fewer. This shows what **has** been asked — not a promise of what **will** be asked.

Cluster 1

Criminal courts, police, prosecutor & defence · kinds of offences

TIER 1 · must prepare | Unit I · S.2, 6–23 BNSS | asked 20× in 11 of 11 papers

Every past question from this cluster
Short notes: A Police *(2013, Dec 2015, Jan 2020)* · A Cognizable offence *(2013, May/June 2016, 2018)* · A Inquiry *(2014, Jan 2019)* · A Sessions Judge *(2014)* · A Chief Judicial Magistrate *(Dec 2015)* · A Sessions court *(May/June 2016)* · A Non-Cognizable offence *(Jan/Feb 2017)* · A The Defence Counsel *(2018)* · A Public Prosecuters *(Jan 2019)* · A Offences *(Feb 2021)* · A Court of Session *(Feb 2021)* · A Executive Magistrate *(Common paper)*
Essays: B *Jan 2020* — Differentiate between cognizable and non-cognizable offences with suitable examples.
Problems: C *Code 1026* — A wife conceals evidence of an offence committed by her husband — is she liable, under which section, and which... · C *Dec 2015* — Two persons entered into a gold shop, took away the box consisting of twelve gold chains. After going home they came...

Core idea

Rationale: substantive law (BNS) says **what** is a crime; procedural law says **how** to find, try and punish the offender **fairly** — protecting both **society** and the **liberty of the accused**. Criminal procedure is the **machinery** that turns the criminal law into action: who **complains**, who **investigates** (police), who **prosecutes** (Public Prosecutor), who **defends** (defence counsel) and who **decides** (courts). Every offence carries **three labels** in the **First Schedule**: cognizable or not (can police arrest without warrant?), bailable or not (is bail a right?), and which court tries it.

Real life

A chain-snatcher grabs a gold chain at a bus stop. **Theft** is cognizable (police may arrest without warrant and register an FIR), non-bailable if snatching (S.304 BNS) and **triable by a Magistrate**. A **defamation** case is the opposite — **non-cognizable**, police can't investigate without a Magistrate's order, and the victim files a **complaint**.

Old CrPC 1973	New BNSS 2023
In force till 30 June 2024	In force from **1 July 2024** (cases begun earlier continue under CrPC — **S.531 BNSS**)
484 sections	**531 sections**
IPC / Evidence Act	**BNS 2023 / BSA 2023**

PART A · SHORT NOTE

Cognizable & non-cognizable offence

Cognizable offence — one in which a **police officer may arrest without warrant** (S.2 BNSS; First Schedule). Generally serious: murder, rape, robbery, theft, dowry death. Police **must register an FIR** (**S.173**) and may **investigate without the Magistrate's order** (**S.175**).

Non-cognizable offence — police **cannot arrest without warrant**. Information is entered in the station diary and the informant is sent to the Magistrate (**S.174 BNSS** / 155 CrPC); police investigate **only on a Magistrate's order**. Generally minor: defamation, simple hurt, public nuisance.

Point	Cognizable	Non-cognizable
Arrest	**without warrant**	only **with warrant**
Information	FIR — **S.173**	diary entry, refer to Magistrate — **S.174**
Investigation	no permission needed — **S.175(1)**	only with **Magistrate's order** — S.174(2)
Nature	serious	less serious
Example	murder, rape, theft, dowry death	defamation, simple hurt, nuisance

Mixed case: if a case has at least one cognizable offence, the **whole case is treated as cognizable** (**S.174(4)**).

The label decides police power — the First Schedule is the master key.

PART A · SHORT NOTE

Police

The **Police Act, 1861** organises the force (DGP → SP → Circle Inspector → **Station House Officer** (SHO) → constables). Under the BNSS the police **register FIRs (S.173)**, **investigate (S.175–193)**, **arrest (S.35)**, **search & seize (S.185)**, **hold inquests (S.194)** and file the **police report / charge sheet (S.193)**. Limits: **confession to police is not evidence** (**S.23 BSA**, old S.25 IEA); statements under **S.180** (161 CrPC) aren't signed and are used only to **contradict** (**S.181**). **Prakash Singh v Union of India** (2006) ordered police reforms — separate investigation from law and order, fixed tenure, complaints authorities.

PART A · SHORT NOTE

Public Prosecutor & Defence counsel

Public Prosecutor (PP) — appointed by the State for the High Court and each Sessions division (**S.18 BNSS** / 24 CrPC); **Assistant PPs** conduct cases before Magistrates (**S.19** / 25); a **Directorate of Prosecution** supervises them (**S.20** / 25A). The PP is an **officer of the court**, not a mouthpiece of the police — his duty is to be **fair**, place all evidence, even what helps the accused. A **victim may engage an advocate** to assist the PP (**S.18(8) proviso**).

Defence counsel — every accused has the right to be **defended by a lawyer of his choice** (**Art. 22(1)**; **S.340 BNSS** / 303 CrPC); if he is poor, **legal aid at State cost** (**S.341** / 304; **Art. 39A**). See Cluster 6.

PART A · SHORT NOTE

Courts — Sessions Court, CJM, Executive Magistrate

Court	Who / sentence it can pass
Court of Session — S.8 BNSS (9 CrPC)	Sessions Judge, Addl. SJ: **any sentence** allowed by law, but **death needs High Court confirmation** (S.22(2)). Asst. SJ: up to **10 years** (no death / life)
Chief Judicial Magistrate — S.10 (12)	up to **7 years**, any fine (S.23(1))
JM First Class	up to **3 years** + fine up to ₹50,000 (BNSS raised it from ₹10,000), or **community service**
JM Second Class	up to **1 year** + fine up to ₹10,000, or community service
Executive Magistrate — S.14 (20)	DM, SDM, Tahsildar: **not a court that tries offences** — keeps public order: S.163 orders (old 144), dispersal of unlawful assembly, security for keeping the peace (S.125–143), inquests (S.196)

BNSS **abolished Metropolitan Magistrates** (they become Judicial Magistrates). Offences under the BNS are triable by the court shown in the **First Schedule**; offences under other laws by the court named there, else as per **S.21** (punishable 7+ years / life / death → Sessions, others → Magistrate).

PART A · SHORT NOTE

Inquiry, investigation & trial

Investigation
by **police** (or a person authorised by a Magistrate) to **collect evidence** — S.2 BNSS; ends in a **police report** (S.193)

→

Inquiry / Trial
Inquiry: every inquiry **other than a trial** by a Magistrate or Court (e.g. before committal, S.226 dismissal, maintenance). **Trial**: the judicial process that ends in **conviction or acquittal**

Order: **FIR → investigation → charge sheet → cognizance → (inquiry) → charge → trial → judgment**. Investigation is executive; inquiry and trial are judicial.

PART A · SHORT NOTE

Offence

Offence = any **act or omission made punishable by law** for the time being in force (**S.2 BNSS**). Classified: cognizable / non-cognizable; bailable / non-bailable; compoundable / non-compoundable; summons-case / warrant-case (**warrant case** = punishable with **death, life or imprisonment over 2 years**; others are **summons cases**).

PART B · ESSAY

Cognizable v non-cognizable offences (with examples)

Q. Differentiate between cognizable and non-cognizable offences with suitable examples. (Jan 2020)

1. Introduction

The BNSS sorts every offence by **how much power the police get**. The test is the **First Schedule**, column 4: 'cognizable' or 'non-cognizable'. The idea: in **serious** crimes the police must act **at once** — arrest, search, investigate — without waiting for a Magistrate; in **minor** crimes the victim's private interest dominates, so the police act only under **judicial control**.

📖 *Bare Act — S.2 BNSS (S.2(c), (l) CrPC)*

"**Cognizable offence** means an offence for which, and **cognizable case** means a case in which, a police officer may, in accordance with the First Schedule or under any other law, **arrest without warrant**." "**Non-cognizable offence** means an offence for which... a police officer has **no authority to arrest without warrant**."

2. Differences

Basis	Cognizable	Non-cognizable
Arrest	without warrant — **S.35**	only under a **warrant**
Information	**FIR** must be registered — **S.173**; Zero-FIR / e-FIR allowed	entered in **daily diary**, informant referred to Magistrate — **S.174(1)**
Investigation	starts **without** order — **S.175(1)**	needs **Magistrate's order** — **S.174(2)**
Cognizance	usually on **police report**	usually on **complaint** (S.223)
Seriousness	grave — punishable 3 years+ mostly	minor
Examples	murder (S.103 BNS), rape (S.64), dowry death (S.80), theft (S.303), robbery	defamation (S.356), simple hurt (S.115), cheating by personation (some), public nuisance

3. Points to add

- **Mixed case** — one cognizable offence makes the whole case cognizable (**S.174(4)**).
- **Duty to register FIR** in a cognizable case is **mandatory** — **Lalita Kumari** (Cluster 2).
- Cognizable ≠ non-bailable: theft is cognizable **and** bailable for small value; defamation is non-cognizable and bailable.
- Other laws: an offence punishable **3 years+** is cognizable and non-bailable; under 3 years — non-cognizable and bailable (First Schedule, Part II).

✅ *Conclusion (write this)*

The cognizable / non-cognizable label decides **whether the police can act on their own**. Serious crimes need speed, so the police get power without warrant; minor crimes stay under the **Magistrate's control** — a balance between **public safety** and **personal liberty (Art. 21)**.

🧠 *Memory trick*

C = Cop can act (arrest + investigate on his own). **N = Needs a Magistrate.**

PART C · PROBLEM *Dec 2015*

Q. Two persons entered a gold shop and took away a box that should have had twelve gold chains; at home they found the box empty. Both were arrested. Have they committed an offence, and which court has jurisdiction?

Issue — Is taking an empty box (believing it held chains) an offence, and which court tries it?

Law — **Theft — S.303 BNS** (IPC 378/379): dishonestly moving **movable property** out of another's possession without consent. **Attempt — S.62 BNS** (IPC 511): attempt to commit an offence punishable with imprisonment. Illustration to old S.511 IPC: a pickpocket who finds the pocket **empty** is guilty of **attempt to commit theft**. **Venue — S.197 BNSS**: where the offence was committed. Theft is **cognizable, triable by any Magistrate**.

Apply — The **box itself** is movable property of the shop, taken dishonestly — that is **theft of the box**. As for the chains, they did all they could; failure was due to a fact unknown to them — **attempt to commit theft** of the chains. Both acted together — **common intention (S.3(5) BNS)**.

Decision — **Both are guilty of theft (of the box) and attempt to commit theft (of the chains) with common intention; cognizable, triable by a Judicial Magistrate where the shop is located.**

PART C · PROBLEM *Code 1026*

Q. A wife conceals evidence of an offence committed by her husband. Is she liable? Under which section, and which court tries it?

Issue — Is a wife liable for causing disappearance of evidence to screen her husband?

Law — **S.238 BNS** (IPC 201) — causing disappearance of evidence or giving false information to screen an offender. Note: the old exemption for spouses applies only to **harbouring** an offender (**S.249 BNS** / IPC 212 exception), **not** to destroying evidence. Punishment and court depend on the main offence: if the main offence is **capital**, up to **7 years** → triable by the **court that tries the main offence** (First Schedule).

Apply — Harbouring her husband would be excused (wife exception). But **concealing evidence** is a separate offence with **no exception for a wife**.

Decision — **Yes, liable under S.238 BNS (IPC 201); tried by the court competent to try the main offence — e.g. Court of Session if the husband committed murder.**

Cluster 2

FIR, complaint & investigation (charge sheet, inquest, police inaction)

TIER 1 · must prepare | Units I–II · S.173–196, 210–226 BNSS | asked 20× in 10 of 11 papers

Every past question from this cluster

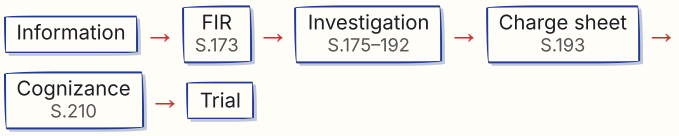
Short notes: A Complaint *(2014, May/June 2016)* · A Charge sheet *(2014, Dec 2015, Jan 2020, Common paper)* · A Inquest *(Jan 2019, Common paper)* · A First Information Report *(Feb 2021)*

Essays: B *2013* — Explain the Law relating to FIR. · B *Dec 2015* — Write a brief note on First Information Report. · B *Jan/Feb 2017* — Write a brief note on FIR. · B *Jan 2019* — Explain the difference between 'complaint' and 'First Information Report'. · B *Common paper* — What is FIR? Explain the provisions relating to FIR and its evidential value.

Problems: C *Dec 2015* — Z was arrested for dowry harassment under Section 498-A. Later on Z's wife died due to the harassment. Who can file... · C *Jan/Feb 2017* — X was raped by the head of the village and a criminal case was filed by the father of the victim. Village head was... · C *2018* — If a Magistrate who is not empowered, erroneously and in good faith, orders the police to investigate into a non-... · C *2018* — After receiving the First Information Report (FIR), the station house officer decided not to investigate the case on... · C *Jan 2020* — A Mouni baba, along with his subordinates killed his manager Kishore. Kishore was lifted, killed and burnt the dead... · C *Feb 2021* — Police do nothing (or collude) in a cognizable case — remedy of the informant

💡 Core idea

A criminal case starts in one of two ways: **information to the police** (an **FIR**, for cognizable offences) or a **complaint to a Magistrate**. The police then **investigate** — visit the scene, record statements, collect evidence, arrest — and end with a **police report / charge sheet** (**S.193**) on which the Magistrate takes **cognizance**.



PART B · ESSAY

First Information Report — law and evidential value

Q. Explain the law relating to FIR / What is FIR? Explain the provisions relating to FIR and its evidential value. (2013, Dec 2015, Jan/Feb 2017, Common paper)

1. Meaning

FIR is the **first information of a cognizable offence** given to the **officer in charge of a police station**, recorded under **S.173 BNSS** (154 CrPC). The words 'FIR' are not used in the Code, but it is the **information first in point of time** on which investigation begins. It sets the **criminal law in motion**.

📖 Bare Act — S.173 BNSS (S.154 CrPC)

"Every information relating to the commission of a cognizable offence, **irrespective of the area where the offence is committed**, may be given **orally or by electronic communication** to an officer in charge of a police station... if given orally, **reduced to writing**, read over, and **signed** by the informant; if by electronic communication, taken on record on being **signed within three days**... a copy given **free of cost** to the informant or victim."

2. Essentials / procedure

1. Relates to a **cognizable offence**.
2. Given by **anyone** — victim, witness, relative, even the accused or a stranger.
3. To the **officer in charge** of a police station — **any** station (**Zero FIR**: registered and sent to the station with jurisdiction).
4. **Oral** → reduced to writing, read over, signed; **e-FIR** → signed within **3 days**.
5. Entered in the **book** kept by the State; **free copy** to informant / victim.
6. Information by a **woman victim** of sexual offences — recorded by a **woman officer**, at her residence or place of choice if disabled, with **videography** (S.173(1) provisos).
7. **Preliminary enquiry** (new): for offences punishable **3 to 7 years**, the officer may, with DSP's permission, hold an enquiry within **14 days** to see if a prima facie case exists (**S.173(3)**).
8. **Refusal**: send the substance to the **SP** in writing (**S.173(4)**); then to the **Magistrate (S.175(3))**.

3. Evidential value

- FIR is **not substantive evidence** — it is not given in court on oath.
- It can be used to **corroborate** the informant (**S.160 BSA**, old S.157 IEA) or to **contradict** him (**S.148 BSA**, old S.145 IEA).
- If the informant **dies**, the FIR may be a **dying declaration** (**S.26 BSA**, old S.32 IEA); if given by the **accused**, any confession in it is inadmissible (**S.23 BSA**), but non-confessional parts may be used.
- **Delay** must be explained; an unexplained delay invites embellishment — **Thulia Kali v State of TN** (1972).
- FIR need not be an **encyclopaedia** of all facts; omissions of details are not fatal.

⚖️ **Lalita Kumari v Government of Uttar Pradesh** (2014)

Story — A minor girl went missing. Her father went to the police station, but the police **refused to register an FIR**. He went to the Supreme Court asking: is registration **compulsory** or can the police first 'check' the story?

Held — Constitution Bench: registration of FIR is mandatory if the information discloses a **cognizable offence** — no preliminary inquiry is allowed then. A **limited preliminary inquiry** is allowed only in certain cases (matrimonial, commercial, medical negligence, corruption, long delay), to be finished in **7 days**. Officers who don't register face **action**.

Why it matters — The rule '**Register first, investigate later**'. BNSS S.173(3) now allows a 14-day enquiry only for 3–7-year offences.

Trick — **Shall** register — the word in S.154 is 'shall'.

FIR (S.173)

to **police** · only **cognizable** offences · starts **investigation** · police report follows

v/s

Complaint (S.2 BNSS)

to a **Magistrate** · **any** offence · oral or written · Magistrate examines complainant on oath (**S.223**) · not a police report

PART A · SHORT NOTE

Complaint · Dismissal of complaint

Complaint = an allegation made **orally or in writing to a Magistrate**, with a view to his taking action, that some person has committed an offence — **not a police report** (**S.2 BNSS**). Procedure: Magistrate takes cognizance (**S.210**) → **examines complainant and witnesses on oath** (**S.223**; BNSS adds: the **accused must be heard** before cognizance) → may **postpone process** and direct inquiry/investigation (**S.225**) → **dismisses** if no sufficient ground (**S.226 BNSS** / 203 CrPC) with brief reasons → or **issues process** (**S.227**).

PART A · SHORT NOTE

Charge sheet (police report)

On completing investigation the officer sends a **police report** to the Magistrate (**S.193 BNSS** / 173 CrPC) — names of parties, nature of information, persons acquainted, whether offence committed and by whom, whether accused arrested / on bail. If evidence is found it is a **charge sheet**; if not, a **closure (final) report**. BNSS adds: investigation of rape / child offences to be completed within **2 months**; the informant/victim is told the **progress within 90 days**; further investigation after charge sheet only with court's permission, completed in **90 days**. The Magistrate is **not bound** by a closure report — he may take cognizance or order further investigation (**Bhagwant Singh v Commissioner of Police**, 1985: informant must be **heard** before accepting a closure report).

PART A · SHORT NOTE

Inquest

Inquest = an inquiry into the **apparent cause of an unnatural death** (suicide, killing, accident, suspicious death). Police officer: **S.194 BNSS** (174 CrPC) — goes to the spot, in presence of **two or more respectable inhabitants** (panchas), prepares a report of injuries and apparent cause, sends the body for **post-mortem**. **Magistrate's inquest** (**S.196** / 176) is **compulsory** in **custodial deaths, disappearance or rape in custody**, and a woman's death within **7 years of marriage** (suicide or suspicious). The inquest report is not substantive evidence of how the crime happened.

PART A · SHORT NOTE

Investigation — main steps

- Go to the spot, **forensic team** mandatory for offences punishable **7 years+** (**S.176(3)**).
- Examine witnesses (**S.180**) — audio-video recording allowed; statements not signed, used only to contradict (S.181).
- Confession / statement before a **Magistrate** (**S.183** / 164).
- Arrest, search, seizure (Cluster 3–4); **remand** (S.187).
- Report (S.193). Investigation must be **fair**; the court can transfer it to CBI in rare cases.

PART C · PROBLEM — 2018

Q. After receiving an FIR, the SHO decides not to investigate because the case is 'not serious'. What is the remedy of the aggrieved person?

Issue Can the SHO refuse to investigate a cognizable case, and what can the informant do?

Law **S.173 BNSS** — FIR must be registered (**Lalita Kumari**). **S.176 provisos** — the officer may decline to investigate only if there is **no sufficient ground** (or, in a minor case, send a subordinate), and must **record reasons** and **inform the informant** (S.176(2)). Remedies: ① written complaint to the **SP** (**S.173(4)**) ② application to the **Magistrate (S.175(3))** to order investigation (**Sakiri Vasu v State of UP**, 2008) ③ **private complaint** (S.223) ④ writ to the **High Court**.

Apply If the offence is cognizable and serious, refusal is illegal. Even where the officer may lawfully decline, he must give reasons and inform the informant — who can then go to the SP and the Magistrate.

Decision **The person may approach the SP (S.173(4)), then the Magistrate under S.175(3) for a direction to investigate, or file a complaint (S.223); the High Court is the last resort.**

PART C · PROBLEM *2018*

Q. A Magistrate who is not empowered orders the police, by mistake and in good faith, to investigate a non-cognizable case. Effect on the proceedings?

Issue Does an unauthorised order to investigate a non-cognizable case make the proceedings void?

Law **S.506 BNSS** (S.460 CrPC) — irregularities which **do not vitiate** proceedings: if a Magistrate **not empowered** does certain things **erroneously in good faith**, the proceedings are **not set aside** merely because he was not empowered. Clause (b) expressly covers **ordering the police to investigate under S.174(2)** (155 CrPC). Contrast **S.507** (461) — acts that **do** vitiate (e.g. trying an offender without power).

Apply The order is a curable irregularity — done in good faith, covered by S.506(b).

Decision **The proceedings are valid; the irregularity does not vitiate them (S.506(b) BNSS).**

PART C · PROBLEM *Jan 2020*

Q. A man and his followers killed his manager, lifted the body and burnt it to destroy evidence. Advise the family on filing a criminal case.

Issue How can the family set the law in motion, and for which offences?

Law Murder **S.103 BNS** (302 IPC), **common intention S.3(5)** (34), causing disappearance of evidence **S.238** (201), kidnapping/abduction to murder **S.140** (364). FIR **S.173** — any person may give it, at any station (**Zero FIR**). If police don't act — SP (S.173(4)), Magistrate (S.175(3)), complaint (S.223). Unnatural death — **inquest (S.194)**, forensic team (S.176(3)).

Apply The family should give information at once (oral, written or e-FIR) naming the accused and facts; ask for a copy. Police must register (Lalita Kumari) and investigate; burnt remains go for **forensic / DNA** examination.

Decision **File an FIR under S.173 BNSS for murder, abduction and destruction of evidence with common intention; if refused, go to the SP and Magistrate; the case is triable by the Court of Session.**

PART C · PROBLEM *Feb 2021*

Q. The police do nothing (or collude with the accused) in a cognizable case. What is the informant's remedy?

Issue What can an informant do against police inaction or collusion?

Law **S.173(4)** SP · **S.175(3)** Magistrate's direction · **S.223** complaint · writ under **Art. 226** for fair investigation / transfer · BNSS **S.193(3)(ii)** — informant to be told progress in **90 days**.

Apply Inaction defeats Art. 21 (fair investigation). The Magistrate can monitor investigation (**Sakiri Vasu**); the High Court can transfer it to another agency in exceptional cases.

Decision **Approach the SP, then the Magistrate (S.175(3)), or file a private complaint; in collusion cases seek transfer of investigation from the High Court.**

PART C · PROBLEM *Dec 2015*

Q. Z was arrested for cruelty under S.498-A IPC; later his wife died because of the harassment. Who can file a case, and is the husband liable for her death?

Issue — Who may set the law in motion after a dowry-related death, and what is the husband's liability?

Law — **Cruelty — S.85/86 BNS** (498A). **Dowry death — S.80 BNS** (304B): death of a woman by burns/injury/unnatural causes within **7 years of marriage**, soon before which she was subjected to cruelty for dowry — **min 7 years to life**. **Abetment of suicide — S.108** (306). **Presumption — S.118 BSA** (113B IEA). FIR: anyone. Cognizance of cruelty: on a police report or a complaint by her or a **relative** (old S.198A CrPC, kept in the BNSS). **Magistrate's inquest** compulsory (**S.196**).

Apply — The parents, relatives or **anyone** may lodge an FIR. If the death is within 7 years and cruelty for dowry is shown, the court **shall presume** dowry death.

Decision — **Her parents / relatives (or any person) can file the FIR; the husband is liable for dowry death (S.80 BNS) or abetment of suicide, besides cruelty.**

PART C · PROBLEM *Jan/Feb 2017*

Q. A village head raped a girl; her father lodged a case; neither the victim nor the accused was sent for medical examination, so the accused was acquitted for lack of evidence. Comment.

Issue — Does the failure to medically examine the victim and the accused show a defective investigation, and what follows?

Law — **S.184 BNSS** (164A CrPC) — medical examination of a rape victim **within 24 hours** with her consent, report to IO in **7 days**. **S.52** (53A) — medical examination of the accused of rape. **S.176(1) proviso** — victim's statement recorded by audio-video. Courts: **defective investigation** shouldn't by itself lead to acquittal if other evidence is reliable — **Dhanaj Singh v State of Punjab** (2004); conviction can rest on the **sole testimony** of the prosecutrix — **State of Punjab v Gurmit Singh** (1996).

Apply — The police broke mandatory duties. The court must still weigh the victim's testimony; if credible, conviction can follow; an acquittal can be **appealed** by the State and by the **victim (S.413 proviso)**; erring officers face action.

Decision — **The investigation was illegal and defective; the victim may appeal against the acquittal, seek further investigation / retrial, and the court may proceed against the officers.**

PART A · SHORT NOTE *Criminal Law (Amendment) Act, 2018*

Passed after the **Kathua and Unnao** rape cases (2018). **Punishment**: rape — minimum raised to **10 years**; rape of a girl **under 16** — **20 years** to life; rape / gang rape of a girl **under 12** — **death** possible (now **S.64–70 BNS**). **Procedure**: investigation of child-rape cases within **2 months**, trial within **2 months**, appeal decided within **6 months**; **no anticipatory bail** for rape of a girl under 16 (**S.482(4) BNSS**); the **informant / victim must be heard** in bail applications (S.483). These timelines are carried into the BNSS.

🧠 *Memory trick*

FIR = **S-I-R** → **S**igned · **I**nformation of cognizable offence · **R**ecorded free copy. Evidential value = **C-C-D**: **C**orroborate · **C**ontradict · **D**ying declaration.

Cluster 3

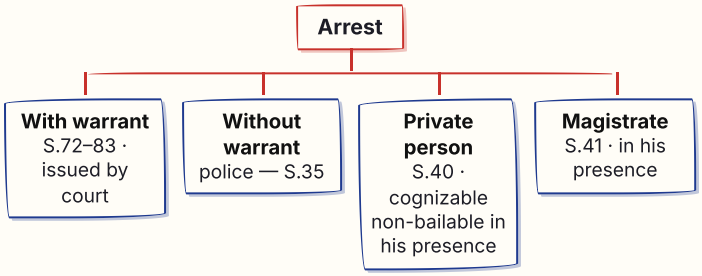
Arrest & rights of arrested persons

TIER 2 · important | Units I–II · S.35–62, 187 BNSS · Art. 21, 22 | asked 10× in 8 of 11 papers

Every past question from this cluster
Short notes: A Rights of Arrested person *(2013, Jan 2020)* · A Arrest without warrant *(Jan/Feb 2017)* · A Remand *(Common paper)*
Essays: B *2013* — Define arrest. How a person is arrested in non-cognizable offence? · B *2018* — What are the rights of arrested persons under the Code of Criminal Procedure?
Problems: C *2014* — Mr. X involved in a conspiracy. Whether a police officer is having authority to arrest Mr. X for conspiracy or not?... · C *May/June 2016* — A judge was involved in a murder case. State whether a police officer has the power to arrest? Discuss. · C *Jan 2019* — A judge is involved in a murder case. Is a police officer has power to arrest? Discuss. · C *Jan 2020* — A judge was involved in a corruption case, it was confirmed by the preliminary enquiry and he was arrested by the...

Core idea

Arrest = taking a person into **custody** by **actual touch or confinement of the body**, unless he submits (**S.43 BNSS** / 46 CrPC). It takes away liberty, so the law fixes **who** may arrest, **when**, **how** and what **rights** the arrested person keeps.



PART B · ESSAY

Arrest — with and without warrant; arrest in non-cognizable cases; impact of S.41A

Q. Define arrest. How is a person arrested in a non-cognizable offence? (2013)

1. Arrest without warrant — S.35 BNSS (41 CrPC)

- Commits a **cognizable offence in the presence** of a police officer.
- Offence punishable **up to 7 years**: arrest only if there is a **reasonable complaint/credible information** and the officer is **satisfied arrest is necessary** — to prevent further offence, for proper investigation, to stop tampering with evidence or threats, or to secure presence — and **records reasons** (also for **not** arresting).
- Offence punishable **over 7 years / death**: on credible information.
- **Proclaimed offender**; possession of **stolen property**; obstructing police / escaping custody; **army deserter**; released convict breaking conditions; requisition from another officer.
- **New (S.35(7))**: no arrest without the permission of an officer **not below DSP** for an offence **under 3 years** if the person is **infirm or above 60**.

2. Notice of appearance instead of arrest — S.35(3)–(6) (old S.41A)

Where arrest is **not required** under S.35(1), police **shall issue a notice** to appear. If the person complies, he **shall not be arrested** unless reasons are recorded. **Impact of S.41A**: arrest became the **exception** for offences up to 7 years — **Arnesh Kumar v State of Bihar** (2014).

3. Arrest in a non-cognizable case

- Police **cannot arrest without warrant** (S.2 BNSS). They act only on a **Magistrate's warrant** (S.72) after he takes cognizance, or on an **order to investigate** (S.174(2)).
- **Exception — S.39 BNSS (42 CrPC)**: a person who commits a non-cognizable offence in the officer's presence and **refuses to give his name and address** (or gives a false one) may be arrested **only to ascertain** them; released on a bond once verified; produced before a Magistrate within **24 hours** if not.

4. How an arrest is made

- Touch or confine the body; **no more force** than necessary; no right to cause death unless the offence is punishable with **death or life** (**S.43**).
- **Handcuffs** only for habitual / repeat offenders, escapees, terrorists, organised crime, etc. (**S.43(3)** — new).
- A **woman** is arrested by a **woman officer** where possible; **no arrest after sunset and before sunrise** except in exceptional cases with **prior permission of a JMFC** (**S.43(5)**).
- **Armed forces** members: Central Govt consent (**S.42**).

Arnesh Kumar v State of Bihar (2014)

Story	A husband faced a S.498-A dowry-cruelty case. He feared **automatic arrest**, which police were then doing in almost every such complaint.
Held	Police must **not arrest automatically** in offences up to 7 years; they must follow the **S.41 checklist**, issue **S.41A notice**, and Magistrates must **not authorise detention mechanically**. Breach → **contempt and departmental action**.
Why it matters	Made **notice-instead-of-arrest** the rule; now built into **S.35 BNSS**.
Trick	**Checklist before handcuffs.**

PART B · ESSAY

Rights of arrested persons

Q. What are the rights of arrested persons under the Code / Art. 22(2)? (2018; short notes 2013, Jan 2020)

Right	Where
To be told the grounds of arrest and of the right to bail (bailable offence)	**S.47 BNSS** (50) · **Art. 22(1)**
To have a relative/friend informed; entry in a register; designated police officer in every district & station to display names	**S.48** (50A) · **S.37** (41C)
To consult a lawyer of choice; meet advocate during interrogation (not throughout)	**Art. 22(1)** · **S.38** (41D)
To be produced before a Magistrate within 24 hours (excluding journey)	**S.58** (57) · **Art. 22(2)**
Medical examination — at his request; by a registered medical practitioner after arrest	**S.53** (54) · S.51
Free legal aid	**S.341** (304) · Art. 39A · *Khatri v Bihar*
Not to be compelled to be a witness against himself; dignity, no torture	**Art. 20(3)**, 21 · *Nandini Satpathy* (1978)
Search of a woman only by a woman, with decency	**S.49(2)**
Default bail if charge sheet not filed in time	**S.187(3)**

⚖️ **D.K. Basu v State of West Bengal** (1997)

Story The Legal Aid Services, West Bengal wrote to the Chief Justice about **deaths in police lock-ups**; the letter became a PIL.

Held Custodial torture violates **Art. 21**. The Court laid down **11 requirements**: police with **name tags**; **arrest memo** attested by a witness and countersigned by the arrestee; **inform a relative**; tell the arrestee this right; **diary entry**; **medical examination every 48 hours**; copies to the Magistrate; meet a **lawyer during interrogation**; a **police control room** display; **compensation** for violation.

Why it matters Most of these became **S.41B–41D CrPC** (2009) → **S.36–38, 48 BNSS**.

Trick Name tag, memo, medical, lawyer, relative.

⚖️ **Joginder Kumar v State of UP** (1994)

Story A young lawyer was called to the police station and **kept for five days** without any case, his family kept in the dark.

Held **No arrest just because it is lawful** — the officer must be able to **justify** it. The arrested person has the right to have **someone told** of the arrest and where he is held.

Why it matters Arrest needs **justification**, not just power.

Trick Power to arrest ≠ need to arrest.

PART A · SHORT NOTE *Remand*

If investigation can't be finished in **24 hours**, the officer must produce the accused before the **Magistrate**, who may authorise detention (**S.187 BNSS** / 167 CrPC): **police custody up to 15 days in total**, which (new) may be taken **in parts** during the first **40 days** (offences up to 10 years) or **60 days** (offences over 10 years / life / death); **judicial custody** thereafter. Total detention limit: **60 / 90 days** — then the accused gets **default (statutory) bail** if the charge sheet is not filed (**M. Ravindran v DRI**, 2020). Detention cannot be authorised without the accused being **produced** (in person or by video).

PART C · PROBLEM *2014*

Q. X is involved in a criminal conspiracy. Can a police officer arrest him (without warrant)?

Issue Is criminal conspiracy a cognizable offence permitting arrest without warrant?

Law **Criminal conspiracy — S.61 BNS** (120A/120B IPC). First Schedule: a conspiracy to commit an offence punishable with **death, life or rigorous imprisonment of 2 years+** is punished like **abetment** and is **cognizable if the object offence is cognizable**. **S.35 BNSS** — arrest without warrant for cognizable offences.

Apply If X conspired to commit a **cognizable** offence (murder, robbery, terrorist act), the conspiracy is cognizable — police may arrest without warrant on credible information, subject to S.35 safeguards. If the object is **non-cognizable**, only on warrant.

Decision **Yes, if the object of the conspiracy is a cognizable offence; otherwise only under a warrant. Safeguards of S.35–38 and D.K. Basu apply.**

PART C · PROBLEM *May/June 2016 · Jan 2019 · Jan 2020*

Q. A judge is involved in a murder (or corruption) case. Can the police arrest him? How is a judge arrested, and which court tries him?

Issue Can police arrest a judicial officer, and what procedure protects the judiciary?

Law No immunity from criminal law. **Delhi Judicial Service Association v State of Gujarat** (1991) guidelines: ① **intimate the District Judge / High Court** before arrest ② if immediate arrest is needed, only a **technical / formal arrest**, intimation at once ③ **not taken to a police station** without the District Judge's order ④ **no handcuffs**; no statement or medical test except **in the presence of his lawyer / a judicial officer**. Prosecution for acts in **official duty** needs **sanction** (**S.218 BNSS** / 197 CrPC). For **High Court / Supreme Court judges** in corruption cases: **prior consultation with the Chief Justice of India — K. Veeraswami v Union of India** (1991); for public servants, approval under **S.17A Prevention of Corruption Act**.

Apply Murder is cognizable; the police may arrest a subordinate judge but must follow the guidelines. In a corruption case the Special Judge (PC Act) tries; a murder case — Court of Session.

Decision **Yes, police can arrest, but only following the Delhi Judicial Service Association guidelines (prior intimation to District Judge / HC, formal arrest, no handcuffs, no police-station custody); trial by the Court of Session (murder) or Special Judge (corruption), after sanction / CJI consultation where required.**

★ **Rights after arrest = G-R-L-M-24: Grounds · Relative told · Lawyer · Medical · 24 hours to a Magistrate.**

Cluster 4

Search & seizure · summons & warrants · S.163 (old 144) & public order

TIER 2 · important | Units I–II · S.63–110, 148–163, 185 BNSS | asked 10× in 8 of 11 papers

Every past question from this cluster
Short notes: A Search *(2013)* · A Seizure *(Dec 2015)* · A Summons *(May/June 2016)* · A Unlawful Assembly *(Jan 2019)* · A Search and seizure *(Common paper)*
Essays: B *2014* — Explain the constitutional validity of search and seizure. · B *Dec 2015* — Explain the law relating to warrants and summons. · B *Jan/Feb 2017* — Elucidate the constitutional validity of search and seizure. · B *Jan 2019* — Discuss the constitutional validity of section 144 of Cr.P.C. · B *Feb 2021* — Procedure for search and seizure

Core idea

To bring the accused and the evidence before the court, the law gives **processes**: **summons** (a polite order to appear), **warrant** (an order to arrest), **proclamation & attachment** (for absconders), and **search & seizure** (to find things). To keep the peace, the **Executive Magistrate** can issue **S.163 orders** (old S.144) and disperse **unlawful assemblies**.

PART B · ESSAY

Warrants and summons — steps to ensure presence of the accused

Q. Explain the law relating to warrants and summons. (Dec 2015; short note May/June 2016)

Summons — S.63–71 (61–69)

written order in duplicate, signed & sealed by the court, to **appear** (or produce a document). Served **personally**, by leaving with an adult family member, by **affixing**, by **registered post**, and now **electronically** (S.64, 70). Used in **summons cases** and for witnesses

v/s

Warrant — S.72–83 (70–81)

order to a police officer to arrest and produce a person. Written, signed, sealed; names person and offence; **in force till cancelled**. May be **bailable** (endorsed with bail — S.73) or non-bailable. Executable **anywhere in India**

Summons S.63 → Bailable warrant S.73 → Non-bailable warrant S.72 →
Proclamation S.84 · 30 days → Attachment of property S.85 → Trial in absentia S.356 · new

- **Proclamation (S.84 BNSS / 82 CrPC)**: if a warrant can't be executed because the person **absconds or conceals himself**, the court publishes a written proclamation requiring him to appear within **at least 30 days**. A person not appearing who is accused of an offence punishable **10 years+, life or death** (BNSS widened the list) may be declared a **proclaimed offender** — the **'absconder status'**.
- **Attachment (S.85)** of movable / immovable property; sale if he does not appear within **6 months**. **New (S.86)**: identify and attach property of a proclaimed person (including abroad).
- **Trial in absentia (S.356 — new)**: a proclaimed offender who absconds to evade trial may be **tried and judged in his absence** after **90 days** from framing of charge, with a State-appointed advocate. Old **S.299 CrPC (S.335 BNSS)** — evidence can be recorded in the absence of an absconding accused and used later.
- Choice: court issues a **summons** in summons cases and a **warrant** in warrant cases, but may issue a warrant where it believes the accused will not obey (**S.227**).

✅ Conclusion (write this)

The Code moves from the **mildest** process (summons) to the **strongest** (proclamation, attachment, trial in absentia) — liberty is restricted only as much as needed to secure the accused's presence.

PART B · ESSAY

Search and seizure — procedure and constitutional validity

Q. Procedure for search and seizure / Elucidate the constitutional validity of search and seizure. (2014, Jan/Feb 2017, Feb 2021; short notes 2013, Dec 2015, Common paper)

1. Search with warrant

- **S.94 BNSS** (91): summons to **produce** a document/thing (now includes **electronic** records).
- **S.96** (93): **search warrant** — when the person won't produce, or the thing's whereabouts are unknown, or a **general search** is needed.
- **S.97** (94): search of a place suspected to contain **stolen property, forged documents**, etc.
- The Code also provides for **forfeiture** of certain publications and search for **wrongfully confined** persons.

2. Search without warrant (police)

- **S.185 BNSS** (165): an officer in charge / investigating officer, with reasonable grounds that a thing **necessary for investigation** may be found and **delay** would defeat it, may search after **recording reasons in writing**, **personally** if possible; copy of the record sent to the Magistrate **within 48 hours** (BNSS adds **audio-video recording**).
- **S.186** (166): search in another station's limits.
- Search of an **arrested person (S.49)**, of a place entered to arrest (**S.44**).

3. General principles — S.103 BNSS (100 CrPC)

1. Occupant must allow free ingress; officer may **break open** if refused.
2. **Two or more independent, respectable inhabitants** of the locality as **witnesses**.
3. A **list (panchnama)** of things seized, signed by the witnesses; **copy** to the occupant.
4. Occupant may **attend**; a **woman** is searched only by a woman with decency.
5. **New — S.105**: the search and seizure must be **recorded by audio-video electronic means** (preferably mobile phone) and sent to the Magistrate **without delay**.

4. Seizure — S.106 BNSS (102)

Police may **seize** property **alleged or suspected to be stolen** or found in circumstances creating **suspicion of an offence**; report to the Magistrate **forthwith**; perishable goods may be sold. Bank accounts can be **frozen** as seizure (**State of Maharashtra v Tapas Neogy**, 1999).

5. Constitutional validity

⚖️ **M.P. Sharma v Satish Chandra** (1954)

Story — During a company-fraud inquiry, police obtained **search warrants** and seized the company's **records**. The directors said a search is **compelled testimony** against them — barred by **Art. 20(3)**.

Held — **Valid** — search and seizure is not '**compelled to be a witness**'; the occupant is not asked to do anything. Search is a **temporary interference** with property, regulated by law, and the Constitution had **no express right to privacy**.

Why it matters — Basis of the validity of search powers. Its privacy part was **overruled** by **K.S. Puttaswamy** (2017): privacy is a fundamental right — searches must now be by **law**, for a **legitimate aim**, and **proportionate**.

Trick — Search ≠ self-incrimination.

- **V.S. Kuttan Pillai v Ramakrishnan** (1980): a search warrant against the **accused's own premises** is valid; he is not compelled to do anything.
- **Pooran Mal v Director of Inspection** (1974): evidence from an **illegal search is still admissible** if relevant — but the illegality affects its **weight**.
- **State of Punjab v Baldev Singh** (1999): under **NDPS Act S.50**, the person must be told of his right to be searched before a **Gazetted Officer or Magistrate** — breach vitiates that search.
- Safeguards that make the power **reasonable** (Arts. 14, 19, 21): written reasons, independent witnesses, list, copy, video, Magistrate's oversight.

✅ *Conclusion (write this)*

Search and seizure are **constitutionally valid** because they are **authorised by law** and wrapped in **safeguards**; after **Puttaswamy**, every search must also be **necessary and proportionate**.

PART B · ESSAY *Constitutional validity of S.144 CrPC (now S.163 BNSS)*

Q. Discuss the constitutional validity of section 144 of Cr.P.C. (Jan 2019)

📖 *Bare Act — S.163 BNSS (S.144 CrPC)*

In urgent cases of **nuisance or apprehended danger**, a **District / Sub-Divisional / Executive Magistrate** may, by **written order** stating the material facts, direct any person to **abstain from an act** or take order with property, if it is likely to prevent **obstruction, annoyance, injury, danger to life, health or safety, disturbance of public tranquillity, a riot or an affray**. Order may be **ex parte** in emergencies; valid for **2 months**; the State may extend up to **6 months**; any aggrieved person may apply to **rescind or alter** it.

- **Babulal Parate v State of Maharashtra** (1961): S.144 is **valid** — a **reasonable restriction** in the interest of **public order** (Art. 19(2)–(4)); urgency, written order and a chance to object are safeguards.
- **Madhu Limaye v SDM, Monghyr** (1970): upheld again; the power is to **prevent** disorder, used in **emergencies only**, on **material facts**, and is subject to judicial review.
- **Re Ramlila Maidan Incident** (2012): a midnight S.144 order and lathi-charge on sleeping protesters were **excessive** — the restriction must be the **least invasive**.
- **Anuradha Bhasin v Union of India** (2020): **repeated** S.144 orders and internet shutdowns in J&K — orders must be **reasoned, published, proportionate**, and cannot be used to suppress **legitimate expression**.

PART A · SHORT NOTE *Unlawful assembly — dispersal*

Unlawful assembly — **five or more persons** with a **common object** to overawe Government, resist law, commit mischief / trespass / any offence, take property by force, or compel illegal acts (**S.189 BNS** / IPC 141). **Dispersal**: Executive Magistrate or officer in charge **commands** it to disperse; if it doesn't, **use of civil force** (**S.148 BNSS** / 129), then **armed forces** on the DM's requisition (**S.149–150**). **Protection** for acts done in good faith (**S.151**; prosecution needs Govt sanction).

🧠 *Memory trick*

Presence ladder = **S-W-P-A-T**: **S**ummons → **W**arrant → **P**roclamation → **A**ttachment → **T**rial in absentia.
Search rules = **R-W-L-V**: **R**easons · **W**itnesses (two) · **L**ist · **V**ideo.

Cluster 5

Bail & bonds — bailable, non-bailable, anticipatory, cancellation

TIER 1 · must prepare | Unit II · S.478–496 BNSS · Art. 21 | asked 15× in 8 of 11 papers

Every past question from this cluster
Short notes: A Bail *(2013)* · A Non-bailable offence *(2014, Dec 2015)* · A Anticipatory Bail *(2018)*
Essays: B *2014* — Differentiate between bailable and non-bailable offences. · B *Jan 2019* — Discuss the provision as to bail and bonds. · B *Feb 2021* — Meaning of bail; when can the police grant bail?
Problems: C *Code 1026* — An under-trial prisoner for six months is granted bail but cannot meet the conditions — what alternatives does she... · C *Code 1026* — Accused released on bail in a murder case attempts another murder within three months — does his bail continue? · C *2013* — Mr. A was released on bail. While he is on bail, he again committed an offence. State whether bail is going to be... · C *2014* — A person was arrested presuming that he is a terrorist. Whether he can be released on bail. Discuss. · C *2014* — Laxmi was an under trial prisoner for last 6 months and at last court granted bail, but she couldnot fulfill the... · C *Dec 2015* — A person was arrested on the presumption of being involved in terrorist activities. Later the court came to know... · C *Feb 2021* — Can a High Court grant anticipatory bail for an offence committed outside its territory? · C *Common paper* — P, a sick woman accused of an offence punishable with death, is arrested and wants bail. Advise.

Core idea

Bail = release of an accused from custody on his giving **security (a bond)** that he will appear when required. Purpose: **secure attendance at trial**, not to punish before conviction. The guiding words: "bail is the rule, jail is the exception" — **State of Rajasthan v Balchand** (1977).

Real life

Ravi is arrested for a scuffle (simple hurt — **bailable**): the police **must** release him once he signs a bond. Kiran is arrested for **robbery (non-bailable)**: she must apply to the **Magistrate**, who **may** grant bail. Suresh only **fears arrest** in a dowry case: he can seek **anticipatory bail** from the **Sessions Court or High Court** before any arrest.

PART B · ESSAY

Bail and bonds — bailable and non-bailable offences

Q. Discuss the provisions as to bail and bonds / Differentiate bailable and non-bailable offences / Meaning of bail; when can the police grant bail? (2014, Jan 2019, Feb 2021; short notes 2013, 2014, Dec 2015, 2018)

1. Meaning

BNSS now **defines** the words (**S.2**): **bail** = release of a person accused or suspected of an offence from the custody of law upon **conditions** imposed by an officer or court on **execution of a bond or bail bond**; **bail bond** = an undertaking **with sureties**; **bond** = a **personal bond** without surety.

2. Bailable offences — bail as a right

Bare Act — S.478 BNSS (S.436 CrPC)

A person accused of a **bailable offence**, arrested or detained without warrant, and **prepared to give bail** at any time while in custody, shall be released on bail by the police officer or the court. The officer or court may release him on a **personal bond without sureties**; if he is **indigent** and cannot furnish surety **within a week** of arrest, he is presumed indigent → released on a personal bond.

- Right is **absolute**; both **police and court** must release. Police bail = **S.478** (bailable) and in default cases.
- If the person breaks the bail conditions, the court may **refuse bail** on a later date in the same case (S.478(2)).

3. Non-bailable offences — bail is discretion

Bare Act — S.480 BNSS (S.437 CrPC)

A Magistrate / officer **may** release a person accused of a **non-bailable offence**; but he **shall not** be released if there are **reasonable grounds to believe** he is guilty of an offence punishable with **death or life**, or he has a previous conviction for such or for 7+ years offences. Proviso: the court **may** still release a person **under 16, a woman, or a sick or infirm** person; and an accused needed for identification is not refused bail on that ground alone.

Factors the court weighs (Gurcharan Singh v State, 1978; Prasanta Kumar Sarkar, 2010)

nature and gravity of the accusation · severity of punishment · prima facie case · chance of the accused fleeing · his character and antecedents · chance of repeating the offence · tampering with witnesses · danger to justice · period already in custody

4. Special powers — S.483 BNSS (439 CrPC)

High Court and Court of Session may grant bail **in any case**, including offences punishable with death/life, and set aside conditions imposed by a Magistrate; notice to the PP in Sessions-triable cases; in **rape of girls under 16/12** the **informant must be heard** (from the **Criminal Law (Amendment) Act 2018**).

5. Bonds

- Amount fixed with regard to circumstances, **not excessive** (**S.484** / 440) — **Moti Ram v State of MP** (1978): a poor mason asked for a **₹10,000 surety from his own district** — the Court said excessive bail = **denial of bail**; personal bonds should be used for the poor.
- Bond by accused and sureties (**S.485** / 441); sureties declare their solvency (**S.486**); discharge of sureties (**S.489**); **forfeiture** of the bond on breach and penalty (**S.491** / 446); cash deposit in lieu (**S.490**).

6. Under-trial prisoners — S.479 BNSS (436A CrPC)

An under-trial who has spent **half of the maximum** sentence in detention shall be released on bond; a **first-time offender** after **one-third** (new). Not for offences punishable with **death or life**. The **jail superintendent** must apply. **Hussainara Khatoon v State of Bihar** (1979): thousands of under-trials in Bihar jails, some longer than the maximum sentence — **speedy trial** is part of **Art. 21**; release them on **personal bonds**.

⚖️ **Satender Kumar Antil v CBI** (2022)

Story — An accused was arrested when the charge sheet was filed, though he had been **cooperating and never arrested** during investigation. The Supreme Court used the case to look at **India's overcrowded jails** (about 2/3 under-trials).

Held — Bail is the **rule**; arrest is a **draconian** measure. Categories of offences with guidelines; S.41/41A must be obeyed; bail applications to be decided in **2 weeks**, anticipatory in **6 weeks**; Government asked to enact a **Bail Act**.

Why it matters — Latest master-judgment on bail.

Trick — Cooperated → don't jail.

PART B · ESSAY *Anticipatory bail*

Q. Anticipatory bail (short note 2018; Feb 2021 problem)

📖 *Bare Act — S.482 BNSS (S.438 CrPC)*

When any person has **reason to believe** that he may be **arrested on accusation of a non-bailable offence**, he may apply to the **High Court or Court of Session**, which may direct that **in the event of such arrest** he shall be **released on bail**. Conditions: make himself available for interrogation, not threaten witnesses, not leave India without permission. Not available for rape of a woman **under 16** / gang rape of a girl under 18 (**S.482(4)**; CLA 2018).

⚖️ **Gurbaksh Singh Sibbia v State of Punjab** (1980)

Story — A Punjab minister (Gurbaksh Singh Sibbia) faced corruption allegations and feared arrest. The High Court laid down rigid conditions for anticipatory bail.

Held — Constitution Bench: S.438 must be read **liberally** in light of **Art. 21**; no rigid formula; 'reason to believe' must be on **specific facts**, not vague fear; the court may grant it **even after FIR**, but not after arrest.

Why it matters — Founding judgment on anticipatory bail.

Trick — Fear must be **reasonable**, not imaginary.

- **Sushila Aggarwal v State (NCT of Delhi)** (2020): anticipatory bail need **not be limited in time**; it can last till the end of trial unless the court limits it.
- **Priya Indoria v State of Karnataka** (2023): a Sessions Court/High Court may grant **interim, limited (transit) anticipatory bail** even where the **FIR is in another State**, in exceptional cases, after notice to the investigating officer and PP.
- Difference from regular bail: anticipatory = **before arrest**, only **HC / Sessions**; regular = **after arrest**.

PART A · SHORT NOTE *Cancellation of bail*

A court that granted bail may **cancel** it and send the accused to custody — **S.480(5)** (Magistrate) and **S.483(3)** (HC / Sessions). Grounds (**Dolat Ram v State of Haryana**, 1995): ① **misuse of liberty** — commits another offence ② **tampering** with evidence / threatening witnesses ③ **absconding** ④ breaking conditions ⑤ bail obtained by **suppression of facts**. Cancellation needs **cogent, overwhelming** reasons; rejection of bail and cancellation of bail are different — cancelling is harder.

PART C · PROBLEM *2013 · Code 1026*

Q. A was released on bail. While on bail he commits another offence (in Code 1026: attempts another murder within three months). Does his bail continue?

Issue — Does committing a fresh offence while on bail lead to cancellation?

Law — **S.480(5) / S.483(3) BNSS** — cancellation; **S.480(3)** — condition that he shall **not commit a similar offence**; **Dolat Ram** — committing an offence while on bail is a classic ground. The fresh offence is a **separate case** with its own bail question.

Apply — Committing another offence (especially attempt to murder) is **misuse of liberty** and breach of the implied/express condition.

Decision — **No. On application by the prosecution, the court will cancel the bail and commit him to custody; the new offence is dealt with separately.**

PART C · PROBLEM 2014 · Dec 2015 · Code 1026

Q. An under-trial prisoner for six months is granted bail but cannot meet the conditions (surety) because of poverty. What is her remedy?

Issue	What relief exists for an accused who can't furnish surety due to poverty?
Law	**S.478 Explanation** — indigent unable to give surety **within a week → personal bond**. **S.484** — bail must **not be excessive**. **S.479** — under-trial detention limits. **Art. 21, 39A**. **Moti Ram v State of MP**; **Hussainara Khatoon**. **DLSA / legal aid** for the application.
Apply	Bail that can't be used is no bail. The court can **modify** the conditions, reduce the amount, accept a **personal bond** without sureties, or **local sureties**.
Decision	**Apply (through legal aid) to the court to modify the condition and release her on a personal bond; if detention has crossed the limits of S.479, she must be released.**

PART C · PROBLEM 2014 · Dec 2015

Q. A person is arrested on the presumption that he is a terrorist (later the court finds he was not involved but he cannot pay the bond). Can he be released on bail?

Issue	Can a suspected terrorist get bail?
Law	General law: **S.480, S.483 BNSS**. Special law: **UAPA S.43D(5)** — no bail if the accusation is **prima facie true** on the case diary (**NIA v Zahoor Ahmad Shah Watali**, 2019). But constitutional courts can grant bail for **long incarceration / no material** — **Union of India v K.A. Najeeb** (2021). Arrest on **mere presumption** is illegal (**Joginder Kumar**). Personal bond for the poor (**S.478, Moti Ram**).
Apply	If there is **no material** linking him, the prima facie test fails and bail must be granted; if the court found he was **not involved**, he should be **discharged/released**, and poverty can't keep him in jail — personal bond.
Decision	**Yes — where no prima facie case exists he is entitled to bail (even under UAPA); being poor, he should be released on a personal bond; illegal detention may attract compensation.**

PART C · PROBLEM Common paper

Q. P, a sick woman accused of an offence punishable with death, is arrested and wants bail. Advise.

Issue	Can a woman who is sick get bail in an offence punishable with death?
Law	**S.480(1) BNSS proviso** (437 CrPC) — even in death / life offences, the court **may** release a person who is **a woman, under 16, or sick or infirm**. **S.483** — Sessions / HC have wider power. Factors: gravity, evidence, risk of flight.
Apply	P falls within **two** protected categories — woman and sick. The bar on bail in capital cases is relaxed for her; she should apply first to the Magistrate (S.480) or to the Sessions Court (S.483) with medical records.
Decision	**Advise her to apply for bail under the proviso to S.480(1) / S.483; the court may release her with conditions (medical treatment, reporting), though it is discretionary.**

PART C · PROBLEM Feb 2021

Q. Can a High Court grant anticipatory bail for an offence committed outside its territory?

Issue	Does a Sessions Court / HC have power to grant anticipatory bail where the FIR is registered in another State?
Law	**S.482 BNSS** (438). **Priya Indoria v State of Karnataka** (2023): in the interest of **liberty (Art. 21)**, a court where the applicant **resides** may grant **interim / limited (transit) anticipatory bail** for an FIR in another State — only in **exceptional cases**, with reasons, after **notice to the investigating officer and PP** of that State, and not where the State law bars it.
Apply	The applicant faces arrest by an outside police force and needs time to approach the competent court there.
Decision	**Yes, limited / transit anticipatory bail can be granted for a short period so the applicant can approach the court with territorial jurisdiction; regular anticipatory bail is for that court.**

★ **Bailable** = right (S.478) · **Non-bailable** = discretion (S.480) · **Anticipatory** = before arrest, only HC/Sessions (S.482) · **Cancellation** = misuse of liberty (S.480(5), 483(3)).

Cluster 6

Fair trial, rights of the accused & preliminary pleas (double jeopardy, venue, limitation)

TIER 1 · must prepare | Unit III · Arts. 14, 20, 21, 22 · S.197–209, 337, 340–341, 360, 514–519 BNSS | asked 17× in 8 of 11 papers

Every past question from this cluster

Short notes: A Fair trial *(2014, May/June 2016)* · A Autrofois convict *(Jan/Feb 2017)* · A Rights of accused *(Jan/Feb 2017)* · A Presumption of innocence *(2018)* · A Legal aid to an indigent accused *(2018)* · A Venue of the trial *(Jan 2020)* · A Right to speedy trial *(Feb 2021)* · A Withdrawal from prosecution *(Feb 2021)* · A Limitation *(Common paper)* · A Double jeopardy *(Common paper)*

Essays: B *2018* — Explain the concept of 'fair Trial' and enumerate the principle features of fair trial. · B *Feb 2021* — Autrefois acquit and autrefois convict

Problems: C *2018* — 'A' was prosecuted for committing theft and acquitted by the court. Again he is prosecuted for the same offence on... · C *Jan 2019* — A is charged before the session court and convicted of the culpable homicide of B. A again was tried on the same... · C *Feb 2021* — Indigent accused in a rape trial had no advocate — effect on the judgment · C *Common paper* — A bank cashier tried for theft is acquitted; later, on similar facts, he is prosecuted and convicted for criminal...

Core idea

A trial is not just about **punishing the guilty**; it must be **fair** to the accused, the victim and society. Fairness has a **constitutional base** — **Art. 14** (equality), **Art. 20** (no ex post facto law, **no double jeopardy**, no self-incrimination), **Art. 21** (just, fair, reasonable procedure; speedy trial), **Art. 22** (lawyer, 24 hours). Before the trial even starts, the accused may raise **preliminary pleas** that **bar** it: no jurisdiction, wrong venue, time-barred, already tried.

PART B · ESSAY

Fair trial — concept and principal features

Q. Explain the concept of fair trial and enumerate its principal features. (2018; short notes 2014, May/June 2016; Common paper with Sessions trial)

1. Meaning

A **fair trial** is one held by an **impartial judge**, in an **atmosphere free of fear and bias**, where the accused knows the case against him and has a **full chance to defend** himself, and the result rests only on **legal evidence**. It is the heart of **Art. 21** after **Maneka Gandhi v Union of India** (1978): procedure must be **just, fair and reasonable**.

2. Features (with their source)

Feature	Source
Presumption of innocence; burden on prosecution beyond reasonable doubt	common law · *Kali Ram v State of HP* (1973)
Independent, impartial court; trial in open court	**S.366 BNSS** (327) · in-camera for rape
Knowledge of accusation — charge read and explained; copies of police report and documents	**S.251, 274** · **S.230** (207)
Right to counsel; free legal aid	**Art. 22(1)** · **S.340–341** (303–304) · Art. 39A
Evidence in the presence of the accused (or his pleader); cross-examination	**S.308** (273)
Right to be heard; examination of accused to explain circumstances	**S.351** (313)
Speedy trial	**Art. 21** · *Hussainara, A.R. Antulay*
No double jeopardy; no self-incrimination	**Art. 20(2), (3)** · **S.337**
Venue: trial where the offence occurred; transfer if fair trial impossible	**S.197** · S.446–448 (406–408)
Right of appeal	**S.415** (374)

⚖️ **Zahira Habibullah Sheikh v State of Gujarat (Best Bakery case)** (2004)

Story — During the 2002 Gujarat riots, a mob burnt the **Best Bakery** in Vadodara; 14 people died. At trial, key witnesses — including Zahira — **turned hostile** under threats; all accused were **acquitted**. Zahira later said she lied out of fear.

Held — The Supreme Court ordered a **retrial outside Gujarat** (in Mumbai): a trial where witnesses are threatened and the prosecutor acts like a defence lawyer is **no trial at all**. 'Fair trial' means fairness to the **accused, the victim and society**; courts must be **active** in finding the truth.

Why it matters — Classic case on **fair trial** — including the **victim's** side.

Trick — Frightened witnesses = failed trial.

⚖️ **Kali Ram v State of Himachal Pradesh** (1973)

Story — Kali Ram was accused of murdering two people. The prosecution's evidence — an alleged extra-judicial confession and recovery — was weak and left two views possible.

Held — Acquitted. Every accused is **presumed innocent** until proved guilty; if **two views** are possible, the one **favourable to the accused** must be taken. Better that some guilty escape than an innocent be punished.

Why it matters — Leading Indian case on **presumption of innocence** (Woolmington v DPP's 'golden thread').

Trick — Two views → the accused wins.

✅ *Conclusion (write this)*

Fair trial is the **soul of criminal justice**: an impartial court, open hearing, knowledge of the charge, a lawyer, evidence in his presence, a chance to explain, a speedy hearing and no second trial for the same offence. Without it, even a correct conviction loses legitimacy.

PART A · SHORT NOTE *Presumption of innocence*

Every accused is **presumed innocent until proved guilty** — the burden is on the **prosecution** to prove guilt **beyond reasonable doubt**; the accused need only raise a **reasonable doubt**. Flows from **Art. 21** and **Art. 14(2) ICCPR**. Exceptions: statutes that **reverse the burden** (dowry death **S.118 BSA**; **NDPS S.35, 54**; **NI Act S.139**). **Kali Ram v HP**; **Woolmington v DPP** (1935).

PART A · SHORT NOTE *Rights of the accused*

- Know the **grounds** of arrest, **lawyer**, **24-hour** production (Art. 22).
- **Free legal aid** (S.341) · **copies** of documents (S.230).
- **Bail** (S.478–483) · **speedy trial**.
- **Silence** — not compelled to be a witness against himself (**Art. 20(3)**); may give evidence **on oath** for his defence only at his own request (old S.315 CrPC, kept in the BNSS).
- Evidence in his **presence**; **cross-examination**; to **explain** circumstances (S.351).
- Protection from **double jeopardy** (S.337) · **appeal** (S.415).

PART A · SHORT NOTE *Legal aid to an indigent accused*

Where an accused before a **Court of Session** (and other courts as the State notifies) is not represented and has **no means** to engage a lawyer, the court **shall assign a pleader at State expense** (**S.341 BNSS** / 304 CrPC). **Art. 39A** + **Legal Services Authorities Act 1987** (free legal services by DLSA). **Khatri v State of Bihar** (1981, Bhagalpur blindings): the Magistrate must **inform** the accused of the right to free legal aid at the **first production**. **Suk Das v UT of Arunachal Pradesh** (1986): a conviction after a trial **without a lawyer**, the accused not told of free aid, is **vitiated**. **Mohd. Ajmal Kasab v State of Maharashtra** (2012): right to a lawyer starts at **first production** before a Magistrate.

PART A · SHORT NOTE *Right to speedy trial*

Not written in the Constitution but read into **Art. 21** — **Hussainara Khatoon v Bihar** (1979). **Abdul Rehman Antulay v R.S. Nayak** (1992): speedy trial covers **all stages** (investigation, inquiry, trial, appeal, revision); delay is judged by balancing **length, reason, the accused's assertion and prejudice**; no fixed time limit. **P. Ramachandra Rao v State of Karnataka** (2002): courts cannot fix **outer time limits** that end trials automatically. BNSS adds **timelines**: charge within **60 days**, judgment within **30–45 days** of arguments, **trial in absentia**, **e-summons**.

PART A · SHORT NOTE

Venue of trial

Ordinary rule — S.197 BNSS (177): every offence is **inquired into and tried** by a court within whose **local jurisdiction it was committed**. Exceptions: uncertain place or offence in several areas / continuing offence → **any** of those courts (**S.198**); where the **act** was done or the **consequence ensued** (**S.199**); offences committed **during a journey** → any court through which the person or thing passed; offences **outside India** → as if committed where the person is found (needs Central sanction). Disputes between courts → decided by the **High Court** (S.206 BNSS / 186 CrPC). An objection to the place must be raised **early**; a finding is not set aside for wrong place unless **failure of justice** (**S.508** / 462).

PART A · SHORT NOTE

Limitation for taking cognizance

S.514 BNSS (468 CrPC): no court shall take cognizance after the period of limitation — **6 months** (fine only), **1 year** (imprisonment up to 1 year), **3 years** (imprisonment 1–3 years). **No limitation** for offences punishable with **more than 3 years**. Period starts from the **date of offence**, or when it becomes **known** to the victim / police (**S.515**). Court may **extend** in the interests of justice or where delay is explained (**S.519** / 473). **Sarah Mathew v Institute of Cardio Vascular Diseases** (2014): what counts is the date of **filing the complaint / initiating prosecution**, not the date the Magistrate takes cognizance.

PART A · SHORT NOTE

Withdrawal from prosecution

The **Public Prosecutor** in charge of a case may, **with the consent of the court**, withdraw from the prosecution at any time **before judgment** (**S.360 BNSS** / 321 CrPC). Effect: **before charge → discharge**; **after charge → acquittal**. The PP must apply his **own mind** in **public interest / justice** (not on Government dictation); the court gives consent in a **supervisory** role. BNSS proviso: the **victim must be heard**. **Sheonandan Paswan v State of Bihar** (1987); **State of Kerala v K. Ajith** (2021): withdrawal refused for MLAs who damaged Assembly property — no public interest.

PART B · ESSAY

Double jeopardy — autrefois acquit and autrefois convict

Q. Autrefois acquit and autrefois convict / Double jeopardy (Feb 2021; short notes Jan/Feb 2017, Common paper)

📖 *Bare Act — Art. 20(2) · S.337 BNSS (S.300 CrPC)*

Art. 20(2): "No person shall be **prosecuted and punished** for the same offence more than once." **S.337(1)**: a person once tried by a **competent court** and **convicted or acquitted** shall, while the conviction/acquittal remains in force, **not be tried again for the same offence**, nor on the **same facts** for **any other offence** for which a different charge might have been made (**S.244(1)**) or for which he might have been convicted (**S.244(2)**).

Autrefois acquit
'formerly acquitted' — plea that he was **already acquitted** of the same offence

v/s

Autrefois convict
'formerly convicted' — plea that he was **already convicted** of the same offence

- **Conditions**: ① previous trial by a **competent court** ② **conviction or acquittal** (not mere discharge) ③ it **remains in force** ④ the new trial is for the **same offence** or on the **same facts**.
- **Exceptions (S.337(2)–(5))**: a **distinct offence** with State consent · **consequences happened later** (victim dies after hurt conviction → trial for culpable homicide allowed) · first court **not competent** · a **discharged** person (S.337(5) needs consent).
- **Art. 20(2) vs S.337**: Art. 20(2) needs **prosecution + punishment**; S.337 is wider — covers **acquittal** too.
- **Maqbool Hussain v State of Bombay** (1953): confiscation of gold by **Customs** is not 'prosecution and punishment' — later criminal trial allowed. **S.A. Venkataraman v Union of India** (1954): a **departmental inquiry** is not prosecution.
- **Kolla Veera Raghav Rao v Gorantla Venkateswara Rao** (2011): convicted under **S.138 NI Act**, he could not be tried again for **cheating (S.420)** on the **same facts** — S.300(1) bars it.

PART C · PROBLEM — 2018

Q. A was prosecuted for theft and acquitted. He is again prosecuted for the same offence because new evidence has been found. Is it legal?

Issue	Can an acquitted person be retried for the same offence on new evidence?
Law	**Art. 20(2)**; **S.337(1) BNSS** (300 CrPC) — autrefois acquit; the acquittal stands unless set aside by a superior court in **appeal / revision** (**S.419** — appeal against acquittal).
Apply	A was tried by a competent court and **acquitted**; the acquittal remains in force. New evidence is not an exception under S.337. The only route is an **appeal against acquittal** within time.
Decision	**Not legal. The second prosecution is barred by S.337 BNSS (autrefois acquit); the State may only appeal against the acquittal.**

PART C · PROBLEM **Jan 2019**

Q. A was charged before the Sessions Court and convicted of the culpable homicide of B. A is again tried on the same facts for the murder of B. Justify.

Issue — Can a person convicted of culpable homicide be retried for murder on the same facts?

Law — **S.337(1) BNSS** — no second trial on the **same facts** for an offence for which he **might have been convicted** (S.244(2)). Illustration (to old S.300): 'A is charged before the Court of Session and **convicted of the culpable homicide of B**. A **may not afterwards be tried on the same facts for the murder of B**.' Exception S.337(3) applies only if new **consequences** happened later — not here.

Apply — Murder and culpable homicide arise from the same act; the Sessions Court could have convicted him of either.

Decision — **The second trial is barred — autrefois convict (S.337 BNSS, Art. 20(2)); it cannot be justified.**

PART C · PROBLEM **Common paper**

Q. A bank cashier tried for theft is acquitted. Later, on similar facts, he is prosecuted and convicted for criminal breach of trust. Is the conviction valid?

Issue — Is a later CBT trial on the same facts barred after acquittal for theft?

Law — **S.337(1)** read with **S.244(1) BNSS** (221 CrPC) — where it is doubtful which of several offences the facts make out (theft, CBT, cheating, receiving stolen property), charges may be framed in the **alternative**; so a later trial for any of them on the **same facts** is barred. Illustration to old S.300: 'A is tried upon a charge of **theft as a servant** and acquitted. He cannot afterwards… be charged with theft simply, or with **criminal breach of trust**.'

Apply — The cashier's case is exactly the illustration.

Decision — **Conviction invalid — barred by autrefois acquit (S.337 BNSS); it should be set aside.**

PART C · PROBLEM **Feb 2021**

Q. An indigent accused in a rape trial was not represented by an advocate. Effect on the judgment?

Issue — Is a conviction valid when an indigent accused was tried without a lawyer?

Law — **Art. 21, 22(1), 39A**; **S.341 BNSS** (304) — in a Sessions trial the court **shall** assign a pleader at State expense; **Khatri v Bihar**; **Suk Das v Arunachal Pradesh** (1986) — conviction without legal aid **vitiated**; **Mohd. Hussain v State (NCT Delhi)** (2012) — retrial ordered.

Apply — Rape is Sessions-triable; the court's duty to offer legal aid is **mandatory**. Failure is a denial of fair trial.

Decision — **The trial and conviction are vitiated; the appellate court will set them aside and order a de novo trial with a State-appointed lawyer.**

🧠 *Memory trick*

Preliminary pleas = **J-V-L-A**: **J**urisdiction · **V**enue · **L**imitation · **A**utrefois (acquit / convict).

Cluster 7

Charge — form, content, alteration & joinder

TIER 2 · important | Unit III · S.234–247 BNSS (211–224 CrPC) | asked 9× in 8 of 11 papers

Every past question from this cluster
Short notes: A Charge *(Jan 2020)*
Essays: B *2013* — Define charge. What are the exceptions to frame a charge under Cr.P.C.? · B *Feb 2021* — Meaning of charge — is framing a charge essential?
Problems: C *Code 1026* — Trial has begun but is incomplete; the prosecutor adds a charge — is this justified? · C *Dec 2015* — X, within the period of 1 year committed theft trespass, cheating. Which court has jurisdiction to try the case and... · C *May/June 2016* — A person has committed three offences within a year, one is a compoundable offence and the other two are... · C *Jan/Feb 2017* — ABC and D were charged for the offences of murder and robbery. All the four said that their intention was only to... · C *Jan 2020* — A woman along with her two girl children was set ablaze by her husband and her in-laws for dowry. Who can file a... · C *Common paper* — X is charged under S.407 IPC but convicted under S.406 IPC. X challenges it. Decide.

Core idea

A **charge** is the **formal accusation** written by the court telling the accused **precisely** what offence he must answer — **when, where, against whom, under which section**. Purpose: the accused must **know the case** to defend himself (**fair trial**). Basic rule: every distinct offence → a separate charge, tried separately (**S.241**); exceptions allow **joinder**.

PART B · ESSAY

Charge — meaning, form and content; is framing essential; exceptions to the rule of separate charges

Q. Define charge. What are the exceptions to framing a separate charge? / Is framing a charge essential? (2013, Feb 2021; short note Jan 2020)

1. Contents of a charge — S.234–236

- State the **offence** and its **legal name**, or define it so the accused gets notice (**S.234** / 211).
- The **law and section**; if previous conviction is relied on for enhanced punishment, its fact, date and place.
- **Time, place, person** against whom, or thing in respect of which (**S.235** / 212); in **criminal breach of trust / dishonest misappropriation**, the gross sum between two dates within **one year**.
- **Manner** where needed to give notice, e.g. cheating — how deceived (**S.236** / 213).
- Written in the **language of the court**; words used in the sense of the law (**S.237**).

2. Is framing a charge essential?

- **Sessions and warrant cases**: a **written charge** is **mandatory** (**S.251, 263, 269**).
- **Summons cases**: no formal charge — the **particulars of the accusation** are stated to the accused (**S.274** / 251); same for **summary trials**.
- **Errors or omissions** are **not fatal** unless the accused was **misled** and there was a **failure of justice** (**S.238** / 215; **S.510** / 464).

⚖️ **Willie (William) Slaney v State of Madhya Pradesh** (1956)

Story	Slaney was tried for murder with **common intention**, but the charge was framed only under **S.302 read with S.34** for one accused; the conviction was challenged because the exact charge was not framed against him.
Held	Constitution Bench: the Code is **not a ritual**; an irregularity or even absence of a charge does **not vitiate** the trial unless it causes **prejudice / failure of justice** — the test is whether the accused **knew what he had to meet** and had a fair chance.
Why it matters	The **prejudice test** for defects in charges (S.238, 510 BNSS).
Trick	No prejudice, no problem.

3. Exceptions to separate charges (joinder)

Exception	Section
Three offences of the same kind within 12 months against the same person — tried together	**S.242** (219)
Several offences in one series of acts forming the same transaction	**S.243** (220)
Doubt which offence the facts make out → alternative charges; convict of the one proved	**S.244** (221)
Minor offence included in the major charged — conviction for the minor without a separate charge	**S.245** (222)
Joint trial of several persons — same offence in the same transaction, abettor and principal, etc.	**S.246** (223)
Accused applies in writing and court thinks no prejudice — joint trial of several offences	**S.241(1) proviso**

Same kind = punishable with the **same amount** of punishment under the **same section** (theft and attempt to theft count as same kind). **Same transaction** = proximity of time and place, **unity of purpose**, continuity of action.

PART A · SHORT NOTE

Alteration / addition of charge

Any court may **alter or add to** any charge **at any time before judgment** (**S.239 BNSS** / 216). The new charge is **read and explained**; if it may **prejudice** the accused, the court may direct a **new trial** or **adjourn**; parties may **recall witnesses** (**S.240** / 217). Only the **court** alters a charge — the prosecutor may **apply**, the court decides.

PART C · PROBLEM

Code 1026

Q. The trial against J has begun but is incomplete; the prosecutor adds a charge. Is this justified?

Issue	Can a charge be added mid-trial, and by whom?
Law	**S.239 BNSS** (216): the **court** may alter / add to a charge any time **before judgment**; read and explained; adjournment / new trial if prejudice; **S.240**: recall witnesses.
Apply	The prosecutor cannot add a charge **himself**; he may **apply**, and the court may add it if the evidence supports it, giving J a chance to meet it.
Decision	**Justified only if added by the court under S.239 with the safeguards; a charge added by the prosecutor on his own is not valid.**

PART C · PROBLEM

Dec 2015 · May/June 2016

Q. X, within one year, committed theft, trespass and cheating (or: three offences, one compoundable and two non-cognizable). Which court tries them, and what is the punishment?

Issue	Can three different offences within a year be tried together, and by which court?
Law	**S.241** separate charges rule; **S.242** (219) only for three offences **of the same kind** within 12 months; **S.243** same transaction. Courts: theft (**S.303(2) BNS** — up to 3 years), cheating (**S.318(2)** — up to 3 years), criminal trespass (**S.329(3)**) — all triable by a **Magistrate**. Sentences for several offences at one trial — **S.25 BNSS** (31): consecutive unless the court orders concurrent; aggregate not more than **20 years** or **twice** the court's power.
Apply	Theft, trespass and cheating are **not of the same kind**, so S.242 doesn't join them; they can be tried together only if they form the **same transaction** (S.243) or the accused applies (S.241 proviso). Each is punishable as per its section.
Decision	**Ordinarily separate trials before a Judicial Magistrate; joint trial only if one transaction; punishment as per each section, run consecutively within S.25 limits.**

PART C · PROBLEM

Jan/Feb 2017

Q. A, B, C and D are charged with murder and robbery. All four say they meant only to loot, not to kill. How should the charge be framed?

Issue	How are charges framed against several persons for robbery and a killing in the same transaction?
Law	Robbery **S.309 BNS** (392); robbery with **hurt** while committing it **S.309(6)** (394); murder **S.103** (302) with **common intention S.3(5)** (34); **dacoity** needs **five** (**S.310**) — four can't be dacoits. Joint trial **S.246** (223); same transaction **S.243**; alternative charge murder / culpable homicide **S.244**.
Apply	Frame **separate heads**: (i) robbery against all four with common intention; (ii) murder against the actual killer, and against the others with S.3(5) **if** the killing was in furtherance of the common intention; alternatively **robbery causing hurt / death**. Their claim 'only to loot' goes to **intention** — decided on evidence.
Decision	**Charge all four jointly for robbery (S.309) and murder (S.103) read with S.3(5), with an alternative charge; tried together in the Court of Session.**

PART C · PROBLEM

Jan 2020

Q. A woman and her two daughters were set ablaze by her husband and in-laws for dowry. Who can file the case, and how is the charge framed?

Issue	Who sets the law in motion, and how are charges framed for several deaths in one incident?
Law	FIR by **anyone** (S.173). Offences: **murder S.103 BNS** (each death), **dowry death S.80** (woman), **cruelty S.85**, **common intention S.3(5)**. **S.243** — same transaction; **S.246** — joint trial of all accused; **S.244** — alternative charge **dowry death or murder**.
Apply	One transaction: all three deaths and all accused can be tried **together**, with a **separate head** for each death and an alternative S.80/S.103 head for the woman.
Decision	**Her parents / relatives (or anyone) may lodge the FIR; charges framed jointly against husband and in-laws for murder of each victim with common intention, dowry death (alternatively) and cruelty — tried by the Court of Session.**

PART C · PROBLEM *Common paper*

Q. X is charged under S.407 IPC but convicted under S.406 IPC. X challenges it. Decide.

Issue	Can a person charged with a graver offence be convicted of a minor one without a charge for it?
Law	**S.245 BNSS** (222 CrPC) — when a person is charged with an offence consisting of several particulars, some of which make up a **minor offence**, he may be **convicted of the minor offence** though not charged with it. **S.407 IPC** (CBT by carrier — up to 7 years; **S.316(3) BNS**) contains all ingredients of **S.406** (CBT — up to 3 years; **S.316(2) BNS**).
Apply	S.406 is a **minor offence** included in S.407; no prejudice.
Decision	**Conviction valid under S.245 BNSS; the challenge fails.**

🧠 *Memory trick*

Exceptions to separate charges = **3-T-D-M-J**: **3** offences in a year · same **T**ransaction · **D**oubt (alternative) · **M**inor offence · **J**oint trial.

Cluster 8

Trials — Sessions, warrant, summons & summary trials

TIER 1 · must prepare | Units III–IV · S.248–288 BNSS (225–265 CrPC) | asked 14× in 7 of 11 papers

Every past question from this cluster
Short notes: A Summons case *(2014)* · A Trial *(Jan/Feb 2017)* · A Summary trial *(2018)* · A Accomplice *(Common paper)*
Essays: B *2014* — Explain the law relating to trial under Cr.P.C. · B *Dec 2015* — Write briefly the procedure followed in a trial before a session's court. · B *May/June 2016* — Explain the law relating to warrant cases and summons cases. · B *May/June 2016* — Write briefly a note on the procedure followed in a trial before a court of session. · B *May/June 2016* — Write briefly how a judgement is given in a summary case. · B *Jan/Feb 2017* — Explain briefly the trial procedure in warrant cases. · B *2018* — Discuss the procedure to be followed in a trial before a court of session. · B *Jan 2020* — Write a brief note on trial before a session court. · B *Jan 2020* — Differentiate between summary trial and trial in a summons case. · B *Common paper* — What is fair trial? Explain the procedure for a trial before the Court of Session.

Core idea

The BNSS has **four trial tracks**, from the most formal to the quickest: Sessions trial (grave offences, Sessions Judge) → warrant trial (offences over 2 years, Magistrate) → summons trial (up to 2 years) → summary trial (petty offences, short record). The graver the offence, the more safeguards.

Sessions (death / life / 7+ yrs) → Warrant (over 2 years) → Summons (up to 2 years) → Summary (petty, ≤ 3 yrs)

PART B · ESSAY

Trial before a Court of Session — procedure

Q. Write the procedure in a trial before a Court of Session. (Dec 2015, May/June 2016, 2018, Jan 2020, Common paper; 2014 'law relating to trial')

1. Introduction

Grave offences (murder, rape, dowry death, dacoity) are **triable exclusively by a Court of Session**. The Magistrate does not try them but **commits** the case (**S.232 BNSS** / 209). The trial is conducted by a **Public Prosecutor** (**S.248**) — never by a private person — because the State is the prosecutor.

2. Steps

Committal (S.232) → Opening by PP (S.249) → Discharge? (S.250 · 60 days) → Charge (S.251 · 60 days) → Plea (S.252) → Prosecution evidence (S.253–254) → S.351 statement → Acquittal? (S.255) → Defence (S.256) → Arguments (S.257) → Judgment (S.258 · 30/45 days) → Sentence hearing (S.258(2))

1. **Committal** by the Magistrate after supplying copies (**S.232**; within **90 days** of cognizance in BNSS).
2. **Opening the case** — PP describes the charge and evidence (**S.249** / 226).
3. **Discharge** — if no sufficient ground, the judge discharges, recording reasons; the accused may apply within **60 days** of committal (**S.250** / 227).
4. **Framing of charge** — if there is ground to presume the offence, the charge is framed in writing within **60 days** of the first hearing, **read and explained** (**S.251** / 228).
5. **Plea of guilty** — court **may** convict, in its discretion (**S.252** / 229); otherwise date fixed for evidence (**S.253**).
6. **Prosecution evidence** — witnesses examined, cross-examined; may be recorded by **audio-video** (**S.254** / 231).
7. **Examination of the accused** — to explain incriminating circumstances, no oath (**S.351** / 313).
8. **Acquittal** if no evidence (**S.255** / 232), else **defence** evidence (**S.256** / 233).
9. **Arguments** (**S.257** / 234).
10. **Judgment** within **30 days** of arguments, extendable to **45** (**S.258** / 235); if convicted, **hearing on sentence** (**S.258(2)**) — mandatory, **Bachan Singh** (1980).

✅ Conclusion (write this)

The Sessions trial is the **most protective** track: a senior judge, a Public Prosecutor, a written charge, a discharge stage, full evidence, the accused's explanation and a separate **sentence hearing** — all reflecting **Art. 21** fair trial.

PART B · ESSAY

Warrant cases and summons cases — trial procedure

Q. Explain the law relating to warrant cases and summons cases / trial procedure in warrant cases. (May/June 2016, Jan/Feb 2017; short note 2014)

Point	Warrant case	Summons case
Meaning (S.2)	offence punishable with **death, life or imprisonment over 2 years**	any other offence (**up to 2 years**)
Trial	**S.261–273** (238–250)	**S.274–282** (251–259)
Charge	**formal written charge** (S.263, 269)	**no charge** — particulars stated (S.274)
Discharge	**yes** — S.262 (police report; application in **60 days**), S.268	no discharge — **acquittal or conviction**
Absence of complainant	may discharge if offence compoundable / non-cognizable (S.272)	**acquittal** (S.279)
Withdrawal by complainant	—	allowed → acquittal (S.280)
Conversion	—	Magistrate may convert into warrant case if offence over **6 months** (S.282)

- **Warrant case on police report** (S.261–266): copies supplied (S.230) → **discharge** if groundless (S.262) → **charge** within **60 days** of first hearing (S.263) → plea → prosecution evidence (S.265) → defence (S.266) → judgment.
- **Warrant case on complaint** (S.267–273): evidence **before charge** (S.267) → charge (S.269) or discharge (S.268) → cross-examination → defence; **compensation** to the accused for a **false, frivolous** accusation (**S.273** / 250).
- **Summons case** (S.274–282): particulars stated → plea (by post allowed for petty cases, S.276) → evidence → judgment; complainant absent → acquittal.

PART B · ESSAY

Summary trial — procedure and judgment; summary v summons trial

Q. Write briefly how a judgment is given in a summary case / Differentiate summary trial and trial in a summons case. (May/June 2016, Jan 2020; short note 2018)

- **Who** — CJM, JMFC (and specially empowered JMSC) (**S.283 BNSS** / 260).
- **Offences** — **mandatory**: theft, receiving or retaining stolen property where value ≤ ₹20,000 (BNSS raised it from ₹2,000), house-trespass, insult to provoke breach of peace, criminal intimidation, abetment / attempt of these; **discretionary**: after hearing the accused, offences punishable up to **3 years** (S.283(2)).
- **Procedure** — that of a **summons case** (S.284); **sentence cannot exceed 3 months**.
- **Record** (S.285) — serial number, date, names, offence, plea, finding, sentence, date of termination.
- **Judgment** (S.286 / 264) — where the accused **does not plead guilty**, the Magistrate records the **substance of the evidence** and a **brief statement of reasons**.
- If the case is found unsuitable for summary trial, the Magistrate **re-hears** it in the regular way.

Point	Summary trial	Summons trial
Offences	listed petty offences; up to 3 years at discretion	all offences up to 2 years
Who	CJM / JMFC / empowered JMSC	any Magistrate
Max sentence	**3 months**	as per offence / court's power
Record	**abridged** — substance of evidence	full record of evidence
Judgment	brief reasons	full judgment (S.393)
Appeal	no appeal where only a **small fine** is imposed (S.417)	normal appeal

PART A · SHORT NOTE

Accomplice — tender of pardon

An **accomplice** is a person who took part in the crime. To get evidence from inside, the CJM / Magistrate (during investigation or inquiry) or the trial court may **tender a pardon** on condition that he makes a **full and true disclosure** of all circumstances (**S.343 BNSS** / 306) — only for offences **triable exclusively by Sessions** or punishable **7 years+**. He becomes an **approver** and is examined as a witness; if he breaks the condition, he can be **tried** (S.345). **Evidence value**: an accomplice is a **competent witness**; conviction on his uncorroborated testimony is **not illegal** (**S.138 BSA** / 133 IEA), but as a **rule of prudence** courts look for **corroboration in material particulars** (**S.119 BSA** illustration (b) / 114).

PART A · SHORT NOTE

Trial (meaning)

Trial is the judicial examination and determination of the issues in a criminal case, starting with the **framing of charge** (or stating particulars) and ending in **conviction or acquittal**. Kinds: Sessions, warrant (police report / complaint), summons, summary; also **trial in absentia** (S.356) and trials by **audio-video** means (BNSS).

Memory trick

Sessions steps = **C-O-D-C-P-E-S-D-A-J**: **C**ommit · **O**pen · **D**ischarge? · **C**harge · **P**lea · **E**vidence · **S**.351 · **D**efence · **A**rguments · **J**udgment (+ sentence hearing).

Cluster 9

Plea bargaining & compounding of offences

TIER 3 · short-note level | Unit IV · S.289–300, 359 BNSS (265A–265L, 320 CrPC) | asked 5× in 4 of 11 papers

Every past question from this cluster
Short notes: A Plea bargaining *(May/June 2016, Jan 2019)* · A Compounding of offences *(2018)*
Problems: C *May/June 2016* — An accused committed an offence under section 498-A of IPC and he accepted being guilty. Then he pleaded for plea... · C *Jan/Feb 2017* — Z killed his wife by burning her because of dowry. A criminal case was filed against the accused. He admitted the...

Core idea

Two ways to **end a case without a full trial**: **compounding** — the **victim forgives** and settles with the accused (acquittal follows); **plea bargaining** — the accused **admits guilt** in return for a **lighter sentence** and **compensation** to the victim. Both reduce backlog, but both are **limited** to protect society and vulnerable victims.

PART A · SHORT NOTE

Plea bargaining

Meaning: pre-trial negotiation where the accused **pleads guilty** in exchange for a **concession in sentence**, after a **mutually satisfactory disposition** with the victim. Added by the **Criminal Law (Amendment) Act 2005** (Chapter XXIA CrPC, S.265A–L) → **Chapter XXIII BNSS, S.289–300**, on the recommendation of the **Malimath Committee** and the **142nd/154th Law Commission Reports**.

Point	Rule
Applies to	offences punishable up to **7 years** (S.289)
Not to	offences affecting the **socio-economic condition** of the country (as notified) · offences against a woman · offences against a **child below 14** · **juveniles** (S.300) · repeat offenders for the same offence
Application	by the accused within **30 days of framing of charge** (BNSS new), with an affidavit that it is **voluntary** (S.290)
Court checks	examines the accused **in camera** to see it is voluntary
Mutually satisfactory disposition	meeting of accused, victim (and PP/IO) — may include **compensation** (S.291)
Sentence (S.293)	release on **probation / admonition** if eligible; if minimum punishment exists → **half of minimum** (first-time offender **one-fourth**); otherwise → **one-fourth of the maximum** (first-time offender **one-sixth**)
Finality	judgment **final**; **no appeal** except SLP / writ (S.294)
Statements	not used for any other purpose (S.299)

⚖️ State of Gujarat v Natwar Harchandji Thakor (2005)

Story — Soon after Parliament added plea bargaining (2005), the Supreme Court, hearing a case on guilty pleas and sentencing, looked at what the new chapter meant for crowded criminal courts.

Held — Recognised plea bargaining as a **legitimate, constitutionally valid** method to reduce the burden of courts, provided the plea is **voluntary** and the court supervises it. Earlier, **Murlidhar Meghraj Loya v Maharashtra** (1976) and **Kasambhai v Gujarat** (1980) had called it **unconstitutional** and against public policy — the 2005 Act changed that.

Why it matters — Shows the shift from rejection to statutory acceptance.

Trick — From 'no bargaining' (1976) to 'statutory bargain' (2005).

PART A · SHORT NOTE

Compounding of offences

Compounding = the **victim (person aggrieved)** agrees to **drop** the case in return for compensation or settlement. **S.359 BNSS** (320 CrPC) has **two tables**: ① compoundable **without** court permission (e.g. simple hurt, defamation, criminal trespass) ② compoundable **with** permission (e.g. theft by small value, cheating, grievous hurt of some kinds, criminal breach of trust). Effect: **acquittal**. Not allowed where the accused is liable to **enhanced punishment** due to previous conviction, or if he is under committal / appeal without permission. Offences **not** in the tables cannot be compounded — but the **High Court** may **quash** proceedings on settlement under **S.528 BNSS** (482) in private disputes, not in heinous crimes — **Gian Singh v State of Punjab** (2012); **Narinder Singh v Punjab** (2014). **Cheque bounce (S.138 NI)** is compoundable under **S.147 NI Act**.

Compounding
victim settles · only offences in the S.359 tables · **acquittal** · no admission of guilt

v/s

Plea bargaining
accused **admits guilt** · offences up to 7 years (with exclusions) · **conviction** with reduced sentence + compensation

PART C · PROBLEM *May/June 2016*

Q. An accused under S.498-A IPC admits guilt and asks for plea bargaining. Discuss.

Issue	Is plea bargaining available for cruelty against a wife?
Law	**S.289 BNSS** — plea bargaining excluded for an offence **committed against a woman**. Cruelty **S.85 BNS** (498A) — up to 3 years — is an offence **against a woman**. A guilty plea may still be recorded under the ordinary trial (**S.252 / 264 / 275**) — court's **discretion** to convict.
Apply	Although punishable below 7 years, the offence is against a woman, so Chapter XXIII doesn't apply. He may plead guilty in the regular way, without the statutory concessions.
Decision	**Plea bargaining is not available; he may only plead guilty in the ordinary course, and the court decides the sentence on merits.**

PART C · PROBLEM *Jan/Feb 2017*

Q. Z burnt his wife to death over dowry. He admits the guilt in court and asks for a lighter sentence. Can he succeed?

Issue	Can an accused of dowry murder get a reduced sentence by admitting guilt / plea bargaining?
Law	Murder **S.103 BNS** (death / life) and dowry death **S.80** (7 years to life) — beyond **7 years** and against a **woman** → **S.289** excludes plea bargaining. In a Sessions trial a guilty plea under **S.252** may be accepted at the court's **discretion**, but in grave offences courts usually **record evidence**; the plea is only a mitigating factor.
Apply	None of the statutory concessions apply; the court will weigh the gravity (dowry murder is grave).
Decision	**No. Plea bargaining is barred; his confession gives no right to a lighter sentence; the court will try and sentence him under S.103/S.80 BNS.**

🧠 *Memory trick*

Plea-bargain **No** list = **W-C-S-7**: **W**oman victim · **C**hild under 14 · **S**ocio-economic offence · over **7** years.

Cluster 10

Judgment, death sentence, execution · suspension, remission & commutation

TIER 3 · short-note level | Unit IV–V · S.392–412, 430, 453–477 BNSS | asked 5× in 5 of 11 papers

Every past question from this cluster
Short notes: A Death Sentence *(Dec 2015, May/June 2016)* · A Execution *(Jan 2019)* · A Commutation of sentence *(Common paper)*
Problems: C *2014* — An incharge session Judge awarded death sentence. Whether it can be executed or not.

Core idea

The **judgment** ends the trial. If the sentence is **death**, a Sessions Court's order is **not executed** until the **High Court confirms** it. After sentence, the **executive** may **suspend, remit or commute** it, and the President / Governor may grant **mercy** (Arts. 72, 161).

PART A · SHORT NOTE

Judgment — form and content; copies

Pronounced in **open court** (**S.392** / 353). Contents (**S.393** / 354): written in the court's language; the **points for determination**, the **decision** and the **reasons**; the **offence and section**; the **punishment**; if acquittal, the offence of which acquitted and direction to set the accused free. **Special reasons** must be given for a **death sentence**, and reasons for imprisonment of less than 3 months where the law allows more. Court may not **alter** a signed judgment except to correct a **clerical or arithmetical error** (**S.403** / 362).

Copy of judgment (S.404 BNSS / 363 CrPC): if sentenced to imprisonment, the accused gets a copy **free of cost immediately** after pronouncement; on application, a certified copy (free in some cases); in a **death sentence** case he must be told the **time for appeal**; any affected person may get a copy on payment; translation if needed (S.405).

PART A · SHORT NOTE

Death sentence & its confirmation

A Sessions Judge / Additional Sessions Judge may pass a death sentence, but it must be **submitted to the High Court** and is **not executed until confirmed** (**S.407 BNSS** / 366). The HC may **confirm**, pass another sentence, **annul** the conviction, order **further inquiry** or a **new trial** (**S.408–409**); confirmation is signed by **at least two judges** (**S.410**). **Bachan Singh v State of Punjab** (1980): death only in the 'rarest of rare' cases, when life imprisonment is unquestionably foreclosed; **Machhi Singh v Punjab** (1983) gave categories. **Mithu v Punjab** (1983) struck down mandatory death (S.303 IPC).

PART A · SHORT NOTE

Execution

After the HC confirms, the Sessions Court issues a **warrant** for execution (**S.453** / 413). Execution is **postponed** if an appeal lies to the Supreme Court (**S.455** / 415). A **pregnant woman** sentenced to death — the High Court **shall commute** the sentence to **imprisonment for life** (**S.456** / 416). Imprisonment — warrant to the jail; fine — recovered by **attachment and sale** (**S.461** / 421). **Shatrughan Chauhan v Union of India** (2014): **unexplained delay** in deciding mercy petitions and **solitary confinement** are grounds to **commute**; **14 days' notice** between rejection of mercy and execution. BNSS **S.472** (new) sets **timelines** for **mercy petitions**.

PART A · SHORT NOTE

Suspension, remission & commutation of sentence

Power	What
Suspension pending appeal — S.430 (389)	appellate court suspends execution and releases the convict on bail; for sentences up to 3 years the trial court may give time to appeal
Suspend / remit — S.473 (432)	**appropriate Government** may suspend or remit the whole or part of a sentence, **with or without conditions**; breach → re-arrest (**conditional release**)
Commute — S.474 (433)	**death → any other** punishment; **life → imprisonment not less than 7 years** (BNSS); **7+ years → not less than 3**; other imprisonment → fine; rigorous → simple
Restriction — S.475 (433A)	a life convict for an offence punishable with death, or whose death sentence was commuted, must serve at least **14 years**
Mercy — Arts. 72 / 161	President / Governor: pardon, reprieve, respite, remission, commutation — subject to judicial review (*Epuru Sudhakar*, 2006)

Union of India v V. Sriharan (2016): courts can award **life without remission for a fixed term** (e.g. 25 years) in place of death; the State cannot remit where the Centre's concurrence is needed (**S.477** / 435).

PART C · PROBLEM *2014*

Q. An in-charge Sessions Judge awarded a death sentence. Can it be executed?

Issue	Can a death sentence passed by an in-charge / Additional Sessions Judge be executed directly?
Law	**S.22(2) BNSS** (28(2)) — a Sessions Judge or **Additional Sessions Judge** may pass any sentence authorised by law, but a **death sentence is subject to confirmation by the High Court**. **S.22(3)**: an **Assistant Sessions Judge** cannot pass death. **S.407–412** — confirmation procedure.
Apply	An in-charge Sessions Judge exercising Sessions powers may award death, but it is not executable on its own; the proceedings must go to the High Court. If he was only an Assistant Sessions Judge, the sentence is **without jurisdiction**.
Decision	**Not executable until the High Court confirms it (S.407 BNSS); if passed by a judge without power (Asst. SJ), it is illegal and will be set aside.**

★ Death sentence → **HC confirmation (S.407)** · **pregnant woman → life (S.456)** · commutation life → **not less than 7 years** (S.474) · life convicts for capital offences serve **14 years** (S.475).

Cluster 11

Victims of crime — rights & compensation

TIER 3 · short-note level | Unit IV · S.2, 18(8), 360, 395–398, 413 BNSS | asked 5× in 4 of 11 papers

Every past question from this cluster
Short notes: A Victim *(Jan/Feb 2017, Jan 2019)* · A Compensation *(Jan 2020)*
Problems: C *2013* — Satyam committed rape and he is absconding. Whether monetary relief can be granted to the victim or not. Discuss. · C *Jan/Feb 2017* — A criminal case was filed under sec 498-A of IPC, but the accused was absconding. Victim filed for survival. Advice...

Core idea

For long the victim was only a **witness** in 'State v Accused'. The law now gives the victim a **voice** (right to be heard, to engage a lawyer, to appeal, to know the progress) and **money** (compensation from the fine, from the accused, and from the **State's Victim Compensation Scheme** — even when the accused is **never caught**).

PART A · SHORT NOTE — Victim

Victim = a person who has suffered **any loss or injury** caused by the act or omission of the accused, and includes his **guardian or legal heir** (**S.2 BNSS**; S.2(wa) CrPC, added 2009). BNSS clarifies the accused need not be **charged** for a person to be a victim.

- Engage an **advocate** to assist the PP (**S.18(8) proviso**).
- Be **informed of the progress** of investigation within **90 days** (**S.193(3)(ii)**); copy of FIR free (S.173(2)); copies of police report (S.230).
- Be **heard** before withdrawal of prosecution (**S.360** proviso) and in bail of rape-of-child cases (S.483).
- **Appeal** against **acquittal, conviction for a lesser offence or inadequate compensation** (**S.413 proviso** / 372) — **Mallikarjun Kodagali v State of Karnataka** (2018): victim's appeal needs no leave.
- **Free medical treatment** in all hospitals for acid-attack and rape victims (**S.397** / 357C).
- **Witness protection** scheme (**S.398** — new).

PART A · SHORT NOTE — Compensation to crime victims

Source	Section
From the fine imposed — costs, compensation for loss / injury, death (dependants)	**S.395(1)** (357(1))
Compensation by the accused where fine is not part of the sentence	**S.395(3)** (357(3))
State Victim Compensation Scheme — through DLSA / SLSA; even if the offender is not traced or identified, or the case ends in acquittal / discharge; interim relief / first aid free of cost	**S.396** (357A)
Compensation to persons groundlessly arrested	**S.399** (358)
Compensation for false / frivolous accusation in warrant cases	**S.273** (250)

Cases: **Hari Kishan v Sukhbir Singh** (1988) — courts must use S.357 liberally; **Ankush Shivaji Gaikwad v Maharashtra** (2013) — the court **must apply its mind** to compensation in every case; **Suresh v State of Haryana** (2015) — **interim compensation**; **Delhi Domestic Working Women's Forum v Union of India** (1995) — compensation scheme for rape victims; **NALSA Compensation Scheme for Women Victims (2018)**.

✅ Conclusion (write this)

The modern criminal process is **victim-sensitive**: the victim can **participate, be informed, appeal and be compensated** — by the offender or, failing him, by the **State** (S.395–396 BNSS).

PART C · PROBLEM — 2013

Q. Satyam committed rape and is absconding. Can monetary relief be granted to the victim?

Issue Can a rape victim get compensation when the accused is not caught or tried?

Law **S.396 BNSS** (357A CrPC) — **Victim Compensation Scheme**: where the **offender is not traced or identified** but the victim is identified, and no trial takes place, the victim or dependants may apply to the **State / District Legal Services Authority**, which, after inquiry, awards compensation within **two months**; **interim relief** and **free first aid / medical benefits** may be ordered at once. **S.397** — free treatment. **NALSA Scheme 2018** for women victims of sexual assault. Process against the absconder: **proclamation and attachment (S.84–85)**.

Apply The victim need not wait for a conviction. She (or the police on her behalf) applies to the **DLSA**; the court may also recommend.

Decision **Yes — she can get interim and final compensation under S.396 BNSS and the NALSA scheme, plus free medical treatment under S.397, even though the accused is absconding.**

PART C · PROBLEM *Jan/Feb 2017*

Q. A case was filed under S.498-A IPC; the accused husband absconds. The illiterate wife has no means to survive. Advise her.

Issue What remedies does a deserted, illiterate wife have when the husband absconds?

Law **Maintenance — S.144 BNSS** (125 CrPC): a wife unable to maintain herself; **interim maintenance**; order can be made **ex parte** if he wilfully avoids service (S.145). **Protection of Women from Domestic Violence Act 2005 — monetary relief (S.20)**, residence order (S.19), via a Protection Officer. **Free legal aid** — DLSA (Legal Services Authorities Act, S.12 — women are entitled). **Victim compensation (S.396)** for injuries. Process against the absconder — **S.84–85 BNSS**; attach his property.

Apply Being illiterate, she should go to the **DLSA** for a free lawyer, who will file a maintenance petition and a DV-Act application, and press the criminal case.

Decision **Advise free legal aid from the DLSA, a petition for maintenance (S.144 BNSS) and monetary relief under the DV Act, and steps to proclaim / attach the absconding husband's property.**

PART A · SHORT NOTE *Compensation (short note)*

Power of the criminal court to order **payment to the victim** — from the **fine** (S.395(1)), as an **independent order** (S.395(3)), via the **State scheme** (S.396), to the **wrongly arrested** (S.399) and to an accused **falsely accused** (S.273). Purpose: **restorative justice** — repair the harm, not just punish. Courts must **consider** compensation in every case (**Ankush Shivaji Gaikwad**).

Cluster 12

Appeal, reference, review & revision

TIER 3 · short-note level | Unit IV · S.413–442, 528 BNSS (372–401, 482 CrPC) | asked 6× in 6 of 11 papers

Every past question from this cluster
Short notes: A Revision *(2013)* · A Review *(Dec 2015, May/June 2016)* · A Appeal *(Jan/Feb 2017)* · A Reference *(Jan 2019)* · A Revisional powers of the High Court *(Feb 2021)*

Core idea

Mistakes happen, so the Code gives **correction routes**: **appeal** (a statutory right to a full re-hearing), **reference** (a lower court asks the High Court a **legal question**), **revision** (the superior court checks **legality, correctness, propriety**), and the **inherent power** of the High Court. **Review** of its own judgment by a criminal court is **not allowed**, except to correct clerical errors.

Route	Who / when	Key point
Appeal — S.413–435 (372–394)	convict, State, victim	**no appeal except as provided** (S.413); **re-appreciates evidence**
Reference — S.436–437 (395–396)	lower court → High Court	doubt about the **validity of an Act / rule** necessary to decide the case
Revision — S.438–442 (397–401)	Sessions Court / HC, on application or **suo motu**	examines **legality, correctness, propriety**; **no revision of interlocutory orders**; HC can't turn acquittal into conviction
Review	—	**barred** — **S.403** (362): no alteration after signing, except clerical / arithmetical error
Inherent power — S.528 (482)	High Court only	to give effect to the Code, prevent **abuse of process**, secure the ends of justice — quashing

PART A · SHORT NOTE

Appeal

- **No appeal except as provided** by the Code or other law (**S.413** / 372); **victim's right** in the proviso.
- **From convictions** (**S.415** / 374): Sessions / Addl. SJ trial, or sentence over **7 years** → **High Court**; Magistrate's conviction → **Sessions Court**.
- **No appeal in petty cases** — guilty plea convictions (S.416), small sentences / fines (S.417).
- **State appeal against inadequate sentence** (**S.418** / 377); **against acquittal** — with **leave of the High Court** (**S.419** / 378); complainant's appeal needs **special leave**.
- **Powers** of the appellate court (**S.427** / 386): reverse, alter, order retrial, enhance (after notice); **suspension of sentence and bail** pending appeal (**S.430** / 389).

PART A · SHORT NOTE

Reference

Where a court is satisfied that a case before it involves a question as to the **validity of any Act, Ordinance or Regulation**, or any provision in it, the decision of which is **necessary** for disposing of the case, and it thinks it **invalid or inoperative** (not yet so declared by the HC / SC), it shall **state a case** and **refer** it to the **High Court** (**S.436 BNSS** / 395 CrPC). The HC decides the question and the lower court disposes of the case accordingly (**S.437**). It is a **lower court's** request — no party has a right to it.

PART A · SHORT NOTE

Review

A criminal court has **no power to review** its own judgment: once **signed**, it cannot be altered except to correct a **clerical or arithmetical error** (**S.403 BNSS** / 362). **Hari Singh Mann v Harbhajan Singh Bajwa** (2001): even the High Court cannot review a final order under its inherent power. Exceptions: the **Supreme Court** may review under **Art. 137**; review of **bail orders, maintenance orders** (which are not final judgments) is possible. Note: reviewing an order is different from **recalling** an order passed without hearing a party.

PART A · SHORT NOTE

Revision & revisional powers of the High Court

The **High Court or Sessions Judge** may call for the record of any inferior criminal court to satisfy itself as to the **correctness, legality or propriety** of any **finding, sentence or order**, and the **regularity** of proceedings (**S.438 BNSS** / 397). No revision against **interlocutory orders** (S.438(2)) — **Amar Nath v State of Haryana** (1977); but **intermediate** orders that decide important rights can be revised — **Madhu Limaye v Maharashtra** (1977). A party who chose one court (Sessions or HC) **can't file a second revision** in the other (S.438(3)).

High Court's powers (S.442 / 401): those of an **appellate court** — but it **cannot convert an acquittal into a conviction** (S.442(3)) — it can only **order a retrial**; no order to the **prejudice** of the accused without a **hearing**; where an **appeal lies** but wasn't filed, no revision at that party's instance. Revision is **discretionary**, used for **glaring errors** of law or procedure leading to **miscarriage of justice**.

Appeal

statutory right · full re-hearing of **facts and law** · on the party's petition · time limits (Limitation Act)

v/s

Revision

discretionary · checks **legality / propriety** only · may be **suo motu** · no re-appreciation of evidence ordinarily · no interlocutory orders

Memory trick

Correction routes = **A-R-R-R**: **A**ppeal (right) · **R**eference (lower court asks) · **R**evision (superior checks) · **R**eview (**no!** — S.403).

Cluster 13

Probation, parole & reformation — Probation of Offenders Act, 1958

TIER 1 · must prepare | Unit V · PO Act S.3–14 · S.401–402, 473 BNSS | asked 12× in 9 of 11 papers

Every past question from this cluster
Short notes: A Parole *(2013, Jan/Feb 2017, Jan 2020)* · A Probation *(2014, Dec 2015, Feb 2021)*
Essays: B *2014* — What are the salient features of Probation of Offenders Act? · B *2018* — Write the salient features of the Probation of Offenders Act, 1958. · B *Jan 2019* — Explain the powers and functions of probation officers. · B *Common paper* — Explain the provisions of the Probation of Offenders Act (printed as '1989' on the copy; the Act is of 1958).
Problems: C *2013* — Satish killed his wife by giving poison. He committed the crime for first time. Whether he can be released on... · C *Jan 2019* — X killed his wife by giving poison. He committed the crime for first time. Can be released on probation?

Core idea

Not every offender needs **jail**. For **first-time, young or minor** offenders, prison can turn them into hardened criminals. **Probation** lets the court **release** the offender — with a warning (**admonition**) or on a **good-conduct bond**, often under a **probation officer's** supervision — **instead of sentencing** him. **Parole** is different: a **temporary release from prison** of a convict **already serving** a sentence.

PART B · ESSAY

Salient features of the Probation of Offenders Act, 1958

Q. What are the salient features of the Probation of Offenders Act? / Explain its provisions. (2014, 2018, Common paper)

1. Introduction

The **PO Act, 1958** is a **reformative** law: it gives courts power to release certain offenders **after conviction** without sentencing them, so they can **reform in society**. It followed the reformative philosophy of the **Indian Jails Committee** and replaced the narrow old **S.562 CrPC 1898**. It is a **beneficial statute** — read liberally (**Rattan Lal v State of Punjab**, 1965).

2. Features

Section	Provision
S.3 — Admonition	for theft (379), theft in a building (380), theft by servant (381), dishonest misappropriation of a deceased's property (404), cheating (420) IPC, or any offence punishable **up to 2 years** / fine; **no previous conviction** → release after **due admonition**
S.4 — Probation of good conduct	any offence **not punishable with death or life imprisonment** → release on a **bond** (with / without sureties) to keep the peace and be of good behaviour for up to **3 years**; may place him under a **probation officer's supervision**; court considers the **probation officer's report**
S.5 — Compensation & costs	court may order the offender to pay **compensation** for loss / injury and **costs**
S.6 — Offenders under 21	court **shall not sentence to imprisonment** (unless offence punishable with life) unless satisfied it is **not desirable** to use S.3 or S.4 — must **record reasons** and call for a probation officer's report
S.7 — Report	probation officer's report is **confidential**
S.8–9 — Variation / breach	conditions can be varied; on **breach**, the offender is **sentenced** for the original offence
S.11 — Appeal / revision courts	may also use these powers
S.12 — No disqualification	a person dealt with under S.3/4 suffers **no disqualification** attached to conviction (e.g. for a job)
S.13–14 — Probation officers	appointed by the State or recognised; **duties** below
S.18 — Exclusions	not applicable to offences under **S.5(2) of the old Prevention of Corruption Act 1947**; some later Acts also exclude probation (e.g. food adulteration, from 1976)

⚖️ **Ishar Das v State of Punjab** (1972)

Story — A young man, **under 21**, was convicted of selling **adulterated milk**. The courts below sentenced him to the minimum jail term under the Food Adulteration Act.

Held — S.6 PO Act **overrides** even a **minimum sentence** in another Act for offenders under 21 (adulteration was not then excluded by S.18); the court must consider probation. He was released on probation.

Why it matters — Shows the **beneficial, overriding** nature of the PO Act for young offenders.

Trick — Under 21 → think probation **first**.

- **Jugal Kishore Prasad v State of Bihar** (1972): the object is to prevent **young and first offenders** from turning into hardened criminals by contact with jail.
- **BNSS S.401** (360 CrPC): a parallel power — release on probation of good conduct or after admonition; where the PO Act is in force, **the PO Act prevails** (S.19 PO Act). **S.402** (361): special reasons must be recorded for **not** giving the benefit.

✅ *Conclusion (write this)*

The PO Act makes **reformation** the aim for minor and first offenders — admonition, good-conduct bonds, supervision by probation officers, compensation to the victim, and no stigma (S.12) — while keeping out offences punishable with **death or life**.

PART B · ESSAY *Powers and functions of probation officers*

Q. Explain the powers and functions of probation officers. (Jan 2019)

- **Appointment** (S.13): by the State Government, or a person recognised by it, or of a society; works under the **District Magistrate's** control.
- **Inquiry and report** (S.14(a), S.4(2), S.6(2)): **inquire** into the offender's **character, antecedents, family, health, surroundings** and report to the court before it decides — the report is **confidential** (S.7).
- **Supervision** (S.14(b)): **supervise** probationers and visit them; see that they observe the **bond conditions**.
- **Advice and help** (S.14(c)–(d)): **advise and assist** offenders in paying **compensation / costs**, and **find suitable employment**; befriend them.
- **Report breaches** to the court; perform other duties prescribed (S.14(e)). He is a **public servant** (S.15).

PART A · SHORT NOTE *Probation (short note)*

Probation = conditional release of a **convicted** offender **without sentence** (or with sentence suspended), on his promise of good conduct, under **supervision**, with the threat of sentence if he fails. Under **S.4 PO Act** (up to 3 years) and **S.401 BNSS**. It is a **judicial** act, granted **at the time of sentence**, unlike parole.

PART A · SHORT NOTE *Parole — authority, supervision; parole v furlough*

Parole = **temporary release** of a convict **serving a sentence**, for a **specific reason** (illness / death in family, marriage, sowing / harvest) for a short period, on **conditions**, under **supervision**. It is an **executive** act under the **Prisons Act 1894** and **State Prison Rules** (Telangana Prisons Rules) — granted by the **State Government / IG Prisons / District Magistrate** on the jail superintendent's and police report. **Conditional release** and **suspension of sentence** by the Government are under **S.473 BNSS** (432).

Parole	v/s	*Furlough*
for a **specific reason / emergency** · **not a right** · period usually **not counted** in sentence (depends on rules) · executive discretion		**periodic** release after serving part of the sentence, for **good conduct**, to keep family ties · a **right** subject to rules · counted as sentence

Asfaq v State of Rajasthan (2017) explained the difference; **State of Haryana v Mohinder Singh** (2000): parole doesn't suspend the sentence.

PART C · PROBLEM *2013 · Jan 2019*

Q. Satish killed his wife by giving poison. It is his first offence. Can he be released on probation?

Issue — Can a first-time offender convicted of murder get probation?

Law — **S.4 PO Act** — only for offences **not punishable with death or imprisonment for life**. **S.401 BNSS** (360) — likewise excludes offences punishable with death / life. Murder — **S.103 BNS** (302 IPC) — punishable with **death or life**.

Apply — Being a first offender doesn't help; murder by poisoning is outside the Act.

Decision — **No. He cannot be released on probation — the PO Act and S.401 BNSS don't apply to offences punishable with death or life.**

🧠 *Memory trick*

PO Act = **A-B-C-21-12**: **A**dmonition (S.3) · **B**ond of good conduct (S.4) · **C**ompensation (S.5) · under **21** no jail (S.6) · no disqualification (S.**12**).

Cluster 14

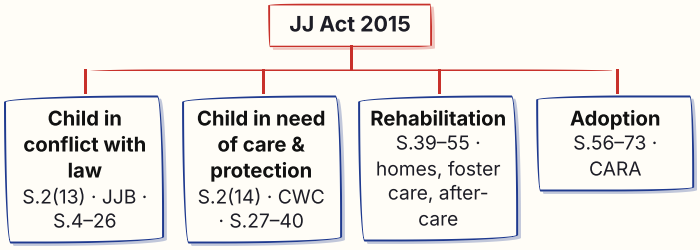
Juvenile justice — JJ (Care and Protection of Children) Act, 2015

TIER 1 · must prepare | Unit V · JJ Act S.2–27, 94, 101 · BNS S.20–21 | asked 17× in 9 of 11 papers

Every past question from this cluster
Short notes: A Juvenile home *(2013, Jan 2020)* · A Definition of Juvenile *(2018)* · A Juvenile Justice Board *(Feb 2021)*
Essays: B *2013* — Write a brief note on the role of Judiciary under Juvenile Justice Act. · B *Dec 2015* — Write about the rehabilitative procedure for juveniles under Juvenile Justice Act, 2000. · B *May/June 2016* — Write briefly the rehabilitative procedure followed under Juvenile Justice Act 2000. · B *Jan/Feb 2017* — Write briefly the salient features of Juvenile Justice Act 2000. · B *Jan 2020* — Write a brief note on the salient features of Juvenile Justice Act, 2000. · B *Common paper* — Who is a juvenile? Explain the provisions of the Juvenile Justice (Care and Protection of Children) Act, 2015.
Problems: C *2013* — A boy of 12 years of age committed theft from his father's pocket. Whether he is punishable, if so which court is... · C *May/June 2016* — A boy aged 16 years 6 months was involved in a kidnapping and murder of a woman. Whether the boy is punishable or... · C *2018* — A boy of 17 years of age, as on the date of commission of offence, escaped from detection. Later he was caught by... · C *Jan 2019* — X, both 14 years and z aged about 19 years tired under section 302 of IPC for murder of constable. They were tried... · C *Jan 2020* — Two boys aged 4 year and 5 years had broken open the locks of two shops for purpose of committing theft, while... · C *Feb 2021* — A 19-year-old convicted for an offence committed when he was under 18 — is it valid? · C *Common paper* — X, a boy aged 17, commits rape. Can he claim to be tried under the Juvenile Justice Act, 2015?

Core idea

A child who breaks the law is treated as a **child**, not as a criminal. The **JJ Act, 2015** (replacing the 2000 Act) deals with **two groups**: children in conflict with law (alleged to have committed an offence — go to the **Juvenile Justice Board**) and children in need of care and protection (abandoned, orphaned, abused — go to the **Child Welfare Committee**). Aim: **care, protection, development, treatment and social reintegration** — not punishment.



PART B · ESSAY

Salient features of the JJ Act, 2015 / rehabilitative procedure / role of judiciary

Q. Write the salient features of the Juvenile Justice Act / the rehabilitative procedure for juveniles / the role of the judiciary under the JJ Act / Who is a juvenile? (2013, Dec 2015, 2016, 2017, Jan 2020, Common paper)

1. Background

India's first national law was the **Juvenile Justice Act, 1986**; the **JJ (Care and Protection of Children) Act, 2000** fixed **18 years** for both boys and girls (following the **UN Convention on the Rights of the Child**, 1989). After the **Delhi gang-rape (2012)**, in which one accused was 17, Parliament passed the **2015 Act**, allowing children of **16–18** accused of **heinous offences** to be **tried as adults** after a **preliminary assessment**. Amended in **2021** (District Magistrate's role in adoption; 'serious offence' redefined).

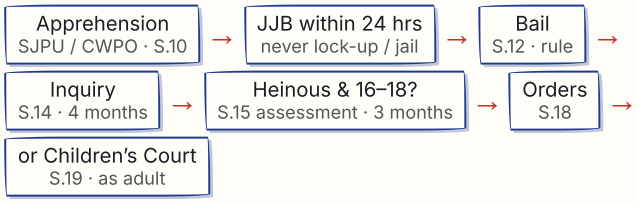
2. Definitions

- **Child** — a person who has **not completed 18 years** (S.2(12)). The Act uses 'child'; '**juvenile**' means a child below 18 (S.2(35)).
- **Child in conflict with law** — alleged or found to have committed an offence and **below 18 on the date of the offence** (S.2(13)).
- **Child in need of care and protection** — homeless, working, begging, abused, orphaned, abandoned, missing, trafficked, etc. (S.2(14)).
- Offences: **petty** (max **up to 3 years**), **serious** (**3–7 years**), **heinous** (**minimum 7 years** or more) — S.2(54), (45), (33). **Shilpa Mittal v State (NCT Delhi)** (2020): an offence with **maximum over 7 years but no minimum** is not heinous (treated as serious, now so defined in 2021).

3. Fundamental principles (S.3)

Presumption of innocence (of any malafide intent, till 18) · **dignity and worth** · participation · **best interest** · family responsibility · safety · positive measures · **non-stigmatising** semantics · **non-waiver** of rights · equality · **privacy** · **institutionalisation as a last resort** · repatriation · **fresh start** (records erased) · **diversion** · natural justice.

4. Children in conflict with law — procedure



- **Juvenile Justice Board** (S.4): a **Metropolitan / Judicial Magistrate First Class** (Principal Magistrate, 3 years' experience) + **two social workers**, at least **one a woman**; sits in a **child-friendly** place; **S.8** — exclusive power over children in conflict with law.
- **Apprehension** (S.10): by police → **Special Juvenile Police Unit / Child Welfare Police Officer**; produced before the JJB within **24 hours**; **never** placed in a **police lock-up or jail**.
- **Bail** (S.12): the child **shall be released on bail**, with or without surety, even in a non-bailable offence — **unless**

release would bring him into association with criminals, expose him to **moral, physical or psychological danger**, or **defeat the ends of justice**; otherwise kept in an **observation home**.

- **Inquiry** (S.14): completed within **4 months** (+2); petty offences — **summary** procedure.
- **Heinous offence, child 16–18** (S.15): **preliminary assessment** of **mental and physical capacity**, ability to understand **consequences**, and circumstances — within **3 months**, with experts; the Board may transfer the case to the **Children's Court** (S.18(3)), which decides whether to **try him as an adult** (S.19).
- **No joint proceedings** of a child and an adult (S.23).

5. Orders (S.18) and limits (S.21)

- **Orders**: advice / **admonition**; **group counselling**; **community service**; **fine** (paid by parent); release on **probation of good conduct** to parent / guardian / fit facility; **special home** for up to **3 years**.
- **S.21**: **no death sentence** and **no life imprisonment without the possibility of release** for any child — even one tried as an adult. A child sentenced by the Children's Court is kept in a **place of safety** till **21**, then moved to **jail** (S.20).
- **S.24**: **removal of disqualification** — records destroyed after the appeal period (except in heinous cases tried as adult).

6. Children in need of care and protection — CWC

Child Welfare Committee (S.27): a **Chairperson + 4 members** (one woman, one child-welfare expert) in every district; any child in need of care may be **produced within 24 hours** (S.31); inquiry within **4 months** (S.36); orders: restore to family, **children's home**, **fit facility**, **foster care**, **adoption** (after declaring **legally free**, S.38).

7. Rehabilitation and social reintegration (S.39–55)

- **Family-based care first**: restoration, **sponsorship** (S.45), **foster care** (S.44), **adoption** (S.56–73; **CARA**, S.68; adoption orders by the **District Magistrate** after the 2021 amendment).
- **Institutions**: **observation home** (S.47 — during inquiry), **special home** (S.48 — after order), **place of safety** (S.49 — 16–18 heinous / above 18), **children's home** (S.50 — CNCP), **open shelter** (S.43), **fit facility / fit person** (S.51–52).
- **After-care** (S.46): support from **18 to 21** for education, skills, housing.
- Education, vocational training, counselling, health care, **individual care plan**.

8. Role of the judiciary

- **JJB** — judicial forum for children in conflict with law; **Children's Court** (Sessions Court under the CPCR Act / designated) for those tried as adults.
- **Any court** must decide a **claim of juvenility** at **any stage, even after final disposal** (**S.9(2)**); if found a child, send to the JJB; any sentence passed is **of no effect** (S.9(3)).
- **Appeals** against JJB / CWC orders to the **Children's Court / Sessions Court** within **30 days** (S.101); revision by the **High Court** (S.102).
- Supreme Court guardianship: **Sheela Barse v Union of India** (1986) — children must not be kept in **jails**; **Sampurna Behrua v Union of India** (2018) — implementation of the Act.

⚖️ **Dr. Subramanian Swamy v Raju (Delhi gang-rape juvenile)** (2014)

Story	One of the accused in the December 2012 Delhi gang rape was **17 years and 6 months** old. Petitioners asked the Court to read the JJ Act so that **mental maturity**, not age alone, decides whether he is a 'juvenile', so that he could be tried as an adult.
Held	The Court **refused**: the **age of 18** in the 2000 Act is a valid **classification** (Art. 14) consistent with international standards; courts can't rewrite it. The juvenile got the maximum of **3 years** in a special home.
Why it matters	Led Parliament to enact the **2015 Act** with the **16–18 heinous-offence** route (S.15).
Trick	Age line held — Parliament moved it.

- **Pratap Singh v State of Jharkhand** (2005): the **date of the offence** decides juvenility, not the date of production.
- **Hari Ram v State of Rajasthan** (2009): the 2000 Act applies to all who were **under 18 on the date of offence**, even in pending cases.
- **Abuzar Hossain v State of WB** (2012) and **S.9(2)**: juvenility can be claimed **at any stage**, even after final disposal.
- **Jitendra Singh v State of UP** (2013): where juvenility is found after conviction, the **conviction stands** but the **sentence is set aside** and the matter goes to the **JJB** for orders.
- **Age determination (S.94)**: ① school certificate / matriculation ② **birth certificate** of the corporation / panchayat ③ only then **ossification / medical** test (within 15 days).

✅ *Conclusion (write this)*

The JJ Act treats every person under 18 as a **child**, first and last — with child-friendly **JJBs and CWCs**, **bail as the rule**, **no jail, no death**, **family-based rehabilitation**, a **fresh start**, and a narrow, assessed route to adult trial only for **heinous offences by 16–18-year-olds**.

PART A · SHORT NOTE

Juvenile home / Juvenile Justice Board

Juvenile homes (now named in the 2015 Act): **observation home** (S.47) — temporary reception **during inquiry**; **special home** (S.48) — for a child **found to have committed** an offence, up to **3 years**; **place of safety** (S.49) — 16–18-year-olds in heinous offences or persons above 18; **children's home** (S.50) — for children in need of care. Run by the State or voluntary organisations, with education, training and counselling. **JJB** — see above (S.4–9).

PART C · PROBLEM

2013

Q. A boy of 12 steals money from his father's pocket. Is he punishable? Which court has power?

Issue — Is a 12-year-old criminally liable for theft, and which forum deals with him?

Law — **S.20 BNS** (IPC 82) — nothing is an offence by a child **under 7**. **S.21 BNS** (IPC 83) — a child **7–12** is not liable unless he has **sufficient maturity** to understand the nature and consequences. JJ Act — a **child in conflict with law**; **JJB** has exclusive jurisdiction (S.8); theft is a **petty / serious** offence.

Apply — At 12 he is just at the edge of S.21; the prosecution must show maturity. Even if so, only the **JJB** can deal with him, by **admonition / counselling / release to parents** (S.18). Theft from a father is a family matter — likely closed with counselling.

Decision — **Not punishable like an adult; if maturity is proved, he is a child in conflict with law before the Juvenile Justice Board, which can only pass reformative orders (S.18).**

PART C · PROBLEM

Jan 2020

Q. Two boys aged 4 and 5 broke the locks of two shops to commit theft and, while returning, injured a man who died a week later. Are they punishable?

Issue — Can children aged 4 and 5 be held liable?

Law — **S.20 BNS** (IPC 82) — **nothing is an offence** done by a child **under seven** (conclusive presumption — **doli incapax**). JJ Act **S.2(14)** — such children may be **children in need of care and protection** → **CWC**.

Apply — Both are under 7 — absolutely immune. The question of who sent them (an adult using children — **S.95 BNS** / hiring a child for an offence; **S.83 JJ Act** — using children by adult groups) can be investigated.

Decision — **Not punishable at all; they may be produced before the CWC for care, and any adult who used them can be prosecuted.**

PART C · PROBLEM

May/June 2016 · Common paper

Q. A boy of 16½ took part in the kidnapping and murder of a woman (or: a 17-year-old commits rape). Is he punishable, by which court, and what punishment? Can he claim the JJ Act?

Issue — How is a 16–18-year-old accused of a heinous offence dealt with?

Law — He is a **child** (S.2(12)) — the JJ Act applies; **heinous offence** (murder — min. **life**; rape **S.64 BNS** — min. **10 years**) → **S.15** preliminary assessment by the **JJB** within 3 months → may transfer to the **Children's Court** (S.18(3)) → **S.19**: try as adult or as a child. **S.21**: no **death**, no **life without release**. **S.20**: place of safety till 21.

Apply — Yes, he can claim the JJ Act. If the assessment shows he had the capacity to understand, the Children's Court may try him **as an adult**; if convicted, he can get imprisonment but **not death or life without release**; else the JJB passes S.18 orders (special home up to 3 years).

Decision — **Punishable only through the JJ Act route — JJB assessment → possibly Children's Court trial as an adult; no death / life without release; kept in a place of safety till 21.**

PART C · PROBLEM

2018 · Feb 2021

Q. A boy, 17 on the date of the offence, escaped; caught at 21, he was tried by a Magistrate as an adult and convicted (or: a 19-year-old convicted for an offence committed under 18). Is it valid?

Issue — Does juvenility depend on the date of the offence, and what if it is found after conviction?

Law — **S.2(13)** — age **on the date of the offence** decides; **S.6** — a person who is **over 18** when apprehended for an offence committed **under 18** is treated as a **child** during inquiry (kept in a place of safety); **S.9(2)–(3)** — claim at **any stage**; sentence by any other court is **of no effect**. **Pratap Singh** (2005); **Jitendra Singh v UP** (2013).

Apply — He was a child when he offended; the Magistrate had no jurisdiction to try him as an adult (unless S.15 route for heinous offences 16–18).

Decision — **The trial / sentence is invalid; on proof of age, the sentence is set aside and the matter is sent to the JJB (Jitendra Singh), which can pass only S.18 orders.**

PART C · PROBLEM

Jan 2019

Q. X (14) and Z (19) were tried together by the Sessions Court for the murder of a constable and acquitted. Was the trial proper?

Issue	Can a child and an adult be tried jointly by a Sessions Court?
Law	**S.23 JJ Act — no joint proceedings** of a child and an adult; the child goes to the **JJB** (S.8), the adult to the regular court. A 14-year-old cannot be assessed under S.15 (only 16–18). **S.9(2)–(3)**.
Apply	Z's trial before the Sessions Court was proper; X's was **without jurisdiction**.
Decision	**Improper as to X — he should have been sent to the JJB; the joint trial is barred by S.23. Z's trial and acquittal stand (the State may appeal); X's proceedings are a nullity, though his acquittal causes him no prejudice.**

🧠 *Memory trick*

JJ Act = **C-B-A-S-R**: **C**hild = under 18 on date of offence · **B**oard (JJB) / CWC · **A**ssessment only 16–18 heinous (S.15) · **S**.21 no death / no life-without-release · **R**ehabilitation, fresh start.

BNSS ⇄ CrPC section finder

Topic	BNSS 2023	CrPC 1973
Cognizable / definitions	**2**	2
Courts — Sessions / CJM / Exec. Magistrate	**8 · 10 · 14**	9 · 12 · 20
Public Prosecutor	**18**	24
Arrest without warrant · notice	**35 · 35(3)**	41 · 41A
Rights: grounds · relative · lawyer	**47 · 48 · 38**	50 · 50A · 41D
24 hours · remand	**58 · 187**	57 · 167
Summons · warrant · proclamation	**63 · 72 · 84**	61 · 70 · 82
Search warrant · police search · witnesses	**96 · 185 · 103**	93 · 165 · 100
Public order (old 144)	**163**	144
FIR · non-cognizable · investigation	**173 · 174 · 175**	154 · 155 · 156
Statements · confession · charge sheet · inquest	**180 · 183 · 193 · 194**	161 · 164 · 173 · 174
Cognizance · complaint · dismissal	**210 · 223 · 226**	190 · 200 · 203
Charge · alteration · 3 offences · minor offence	**234 · 239 · 242 · 245**	211 · 216 · 219 · 222
Sessions trial · discharge · charge · judgment	**248–260 · 250 · 251 · 258**	225–237 · 227 · 228 · 235
Warrant · summons · summary trial	**261–273 · 274–282 · 283–288**	238–250 · 251–259 · 260–265
Plea bargaining	**289–300**	265A–265L
Double jeopardy · legal aid · withdrawal · compounding	**337 · 341 · 360 · 359**	300 · 304 · 321 · 320
Judgment · compensation · VCS · probation	**393 · 395 · 396 · 401**	354 · 357 · 357A · 360
Death confirmation · appeal · revision	**407 · 415, 419 · 438, 442**	366 · 374, 378 · 397, 401
Bail: bailable · under-trial · non-bailable · anticipatory · HC/Sessions	**478 · 479 · 480 · 482 · 483**	436 · 436A · 437 · 438 · 439
Remission · commutation · 14 years	**473 · 474 · 475**	432 · 433 · 433A
Inherent powers · limitation	**528 · 514**	482 · 468

Maxims with their home in the law

Maxim	Meaning	Where it lives
Nemo debet bis vexari pro una et eadem causa	no one shall be vexed twice for the same cause	Art. 20(2) · S.337 BNSS (300) — double jeopardy
Nullum crimen, nulla poena sine lege	no crime, no punishment without a law	Art. 20(1) — no ex post facto punishment
Nemo tenetur seipsum accusare	no one is bound to accuse himself	Art. 20(3) · S.23 BSA (confession to police)
Ei incumbit probatio qui dicit, non qui negat	the burden lies on the one who asserts, not on the one who denies	presumption of innocence · S.104 BSA (101 IEA)
In dubio pro reo	when in doubt, for the accused	benefit of doubt — *Kali Ram v HP*
Audi alteram partem	hear the other side	S.223 proviso (accused heard before cognizance) · S.258(2) sentence hearing
Nemo judex in causa sua	no one should be a judge in his own cause	Art. 14, 21 — impartial court; transfer S.446–448
Actus non facit reum nisi mens sit rea	the act is not guilty unless the mind is guilty	BNS general principles — basis of *doli incapax*
Doli incapax	incapable of crime	S.20–21 BNS (82–83 IPC) — under 7; 7–12 immature
Parens patriae	the State as parent	JJ Act S.3 — best interest of the child; CWC
Salus populi suprema lex	welfare of the people is the supreme law	S.163 BNSS (144) — public order orders
Ubi jus ibi remedium	where there is a right there is a remedy	S.173 FIR · S.175(3) · victim's appeal S.413 proviso
Justice delayed is justice denied	—	Art. 21 speedy trial · *Hussainara*, *A.R. Antulay*

Numbers to remember

24 hrs	15 days	60 / 90	7 yrs	60+

produce arrested person (S.58)	police custody, in parts (S.187)	days → default bail	notice instead of arrest (S.35)	no arrest w/o DSP nod if infirm (<3 yr offence)
3 days sign an e-FIR	**14 days** preliminary enquiry, 3–7 yr offences	**90 days** tell informant the progress	**30 days** proclamation (S.84)	**2 / 6 m** S.163 order / extension
½ · ⅓ under-trial release (S.479)	**60 days** discharge plea / framing charge	**30 → 45** days for Sessions judgment	**₹20,000** theft — summary trial	**3 months** max summary sentence
7 yrs plea-bargaining cap	**₹50,000** JMFC fine limit	**3 yrs** probation bond (S.4 PO)	**21 yrs** PO Act S.6 / after-care	**16–18** heinous → assessment (S.15)

Last-night list — one line per cluster

#	Revise only this
1	First Schedule 3 labels; cognizable v non-cognizable table; courts & sentences (CJM 7 yrs, JMFC 3 yrs + ₹50,000).
2	FIR S.173 steps (Zero FIR, e-FIR 3 days, woman officer, 14-day enquiry); evidential value C-C-D; Lalita Kumari; FIR v complaint; SHO refuses → SP → Magistrate.
3	S.35 (7-yr rule, notice); S.39 non-cognizable; rights G-R-L-M-24; D.K. Basu, Joginder Kumar, Arnesh Kumar; arresting a judge — Delhi Judicial Service Assn.
4	Summons → warrant → proclamation → attachment → trial in absentia; search R-W-L-V; M.P. Sharma + Puttaswamy; S.163 — Babulal Parate, Madhu Limaye, Anuradha Bhasin.
5	Bailable S.478 right; non-bailable S.480 (woman / sick / under-16 proviso); S.479; anticipatory S.482 — Sibbia, Sushila Aggarwal, Priya Indoria; cancellation — Dolat Ram; Moti Ram, Hussainara, Antil.
6	Fair trial table; Best Bakery; Kali Ram; legal aid — Khatri, Suk Das; speedy trial; venue S.197; limitation S.514; S.337 + illustrations.
7	Charge contents; S.241 rule + 3-T-D-M-J; S.239 alteration by court only; Willie Slaney; S.245 minor offence (406 in 407).
8	Sessions steps C-O-D-C-P-E-S-D-A-J; warrant v summons table; summary trial (₹20,000, 3 months, brief reasons); tender of pardon S.343.
9	Plea-bargaining table + W-C-S-7; compounding S.359 two tables; Gian Singh.
10	S.393 contents; S.404 copy; death → HC confirmation; Bachan Singh; pregnant woman → life; S.473–475.
11	Victim definition & rights; S.395–396 compensation (offender untraced too); Ankush Gaikwad; maintenance S.144 for deserted wife.
12	Appeal / reference / revision / review table; S.442(3) no acquittal → conviction; no review (S.403).
13	PO Act S.3, 4, 5, 6, 12, 14; probation officer duties; parole v furlough; murder → no probation.
14	JJ definitions; S.3 principles; JJB, S.10, 12, 14, 15, 18, 21; CWC; rehabilitation; age on date of offence, S.9(2), Jitendra Singh; under-7 doli incapax.

All the best for the exam! 🙏

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Prepared by lawsticker-ai.com from previous year question paper analysis and the bare Acts (BNSS 2023, BNS 2023, BSA 2023, JJ Act 2015, PO Act 1958). Sections and case names were checked carefully; still, read the bare Act once for any provision you quote word-for-word.